

SHOOSMITHS

DATED 15 December 2023

ARTICLES OF ASSOCIATION

LOFT TOPCO LIMITED (Company number 11727900)

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1 Interpretation

1.1 In these Articles the following definitions apply:

A Ordinary Shares: the A ordinary shares of £0.01 each in the capital of the Company.

A Shareholder: a holder for the time being of A Ordinary Shares.

Accelerated Issue: has the meaning given in Article 44.3.2.

Acceptance Notice: has the meaning given in Article 44.2.2(a) and Article 44.4.2.

Acceptance Period: has the meaning given in Article 16.2.4.

Acquisition Exchange Issue: any issue of Securities to a third party as consideration for the acquisition from such third party of any shares, undertaking or business by any Group Company on arm's length terms.

Act: the Companies Act 2006.

acting in concert: has the meaning given to it in the City Code on Takeovers and Mergers published by the Panel on Takeovers and Mergers (as amended).

Adoption Date: the date of adoption of these Articles.

Affected Security Holders: has the meaning given in Article 44.3.2.

Articles: the Company's articles of association for the time being in force.

Asset Sale: a sale by the Company or any other member of the Group of all or substantially all of the Group's business, assets and undertakings to one or more buyers on arm's length terms as part of a single transaction or series of connected transactions (other than as part of a Reorganisation Transaction).

Attorney: has the meaning given in Article 21.1.

B Ordinary Shares: the non-voting B ordinary shares of £0.01 each in the capital of the Company.

Bad Leaver: any Leaver:

- (a) who is lawfully summarily dismissed in accordance with the terms of the Leaver's Service Agreement by reason of:
 - (i) gross misconduct;
 - (ii) being convicted of any criminal offence (excluding an offence under road traffic legislation of which a custodial sentence is not imposed); or
 - (iii) being prohibited by law from being a director; or
- (b) who voluntarily resigns as an employee, director or consultant of any Group Company and does not continue to be an employee, director or consultant to any other Group Company (save where such termination is determined by a court or a tribunal (where all rights of appeal have been exhausted or time barred) as constructive dismissal.

bankruptcy: includes individual insolvency proceedings in a jurisdiction other than England and Wales or Northern Ireland which have an effect similar to that of bankruptcy.

Board: the board of directors of the Company (or a duly authorised committee thereof) from time to time.

B Shareholder: a holder for the time being of B Ordinary Shares.

Business Day: any day (other than a Saturday, Sunday or bank or public holiday) when commercial banks are open for ordinary banking business (and not just internet banking services) in London and Luxembourg.

Business Plan: has the meaning given in the Investment Agreement.

Cessation Date: in relation to a Leaver:

- (a) the date where his or her employment or all his or her directorships with the Group or a contract for services ceases by virtue of either: (i) notice given by the Leaver; or (ii) notice given by the relevant Group Company; or (iii) where a payment is made in lieu of notice; or (iv) the relevant Group Company terminates the contract without notice on the occurrence of a repudiatory breach, in each case in accordance with the terms of his or her Service Agreement;
- (b) (if the Leaver dies), the date of his or her death or certification of such death (if the date of death is unknown); or
- (c) in any other circumstances, the date on which the Leaver ceases to be employed or engaged by or an officer or director of a Group Company or otherwise ceases to provide services to the Group under a contract for services.

Chairperson: the chairperson of the Board appointed pursuant to Article 31.

chairperson of the meeting: has the meaning given in Article 66.3.

Claim: has the meaning given in the Investment Agreement.

Cost: the price paid for the Leaver Equity by the Leaver or the Departed Manager Leaver Equity by the Departed Manager Leaver (as the case may be), including any payments made by the Group to the Leaver or the Departed Manager Leaver (as the case may be) to assist the Leaver or the Departed Manager Leaver (as the case may be) in funding the subscription of the Leaver Equity or the Departed Manager Leaver Equity (as the case may be) including pursuant to a Manager Loan Agreement (as the case may be).

Co investment Scheme: any scheme under which certain officers, employees, members or partners of the MCP Fund III Group or its investment adviser, general partner, manager, operator, nominee or any member of MCP Fund III are entitled or required (as individuals or through a Fund or any other vehicle) to acquire Securities issued by any member of the Group.

Companies Acts: the Companies Acts (as defined in section 2 of the Act), in so far as they apply to the Company.

Company's Lien: has the meaning given in Article 49.2.

Conflict Situation: any situation or matter in which any director has, or can have, a direct or indirect interest that conflicts, or possibly may conflict, with the interests of the Company.

Control: the possession, directly or indirectly, of the power to direct or cause the direction of a person or the management and policies of a person, whether through ownership of voting securities, by agreement or otherwise (and "Controls", "Controlled" and "Controlling" shall be construed accordingly).

Controlling Interest: an interest (as defined in sections 820 and 825 of the Act) in the Shares conferring in aggregate more than 50% of the total voting rights normally exercisable at any general meeting of the Company or the Lead Investor (as applicable).

Debt Finance: has the meaning given in the Investment Agreement.

Debt Securities: the MCP Shareholder Loans (if any), shares that carry a fixed return on profits, capital or otherwise (if any) and/or any other debt or debt like security or rights convertible into or exercisable or exchangeable for debt or debt-like securities of any class or series of loan capital (or which are convertible into or exercisable or exchangeable for any security which is, in turn, convertible into or exercisable or exchangeable for debt or debt-like securities of any class or series of loan capital) issued by any Group Company from time to time, in each case, having the rights and being subject to the restrictions set out in the Investment Agreement and the relevant instrument constituting such security, but excluding any Debt Finance.

Default Event:

- (a) any member of the Group being, or in the opinion of the Lead Investor (acting reasonably), having no reasonable prospect of avoiding becoming in the next 120 days, in material breach of the Articles, this Agreement, the MCP Shareholder Loans which are in writing or any of the Financing Documents but provided that no breach of, or breach which arises as a consequence of a breach, (i) of the interest cover ratio (ICR) covenant contained in the Nuveen Financing Facility Agreement where such breach may be cured by any member of the Group in accordance with the terms of the Nuveen Financing Facility Agreement (and for the avoidance of doubt this shall not include funds received by way of subscription of Securities and/or the Group receiving further Debt Finance) or (ii) in relation to Tranche B under the Nuveen Financing Facility Agreement (as defined therein) shall give rise to a Default Event where such breach can be cured without there being a material adverse effect on the Company; or
- (b) any member of the Group being, or in the opinion of the Lead Investor (acting reasonably) being likely to become, unable to pay its debts as they fall due in the following twelve (12) month period (on a rolling basis).

Defaulting Security Holder: has the meaning given in Article 12.

Defaulting Shareholder: has the meaning given in Article 44.8.

Deed of Adherence: has the meaning given in the Investment Agreement.

Departed Manager Cessation Date: in relation to a Departed Manager Leaver:

- (a) (if the Departed Manager Leaver dies), the date of his death or certification of such death (if the date of death is unknown); or
- (b) in any other circumstances, the date upon which any Group Company becomes aware of:
 - (i) any breach of any restrictive covenant under limb (b) of the definition of Departed Manager Leaver;
 - (ii) any acts of fraud being committed under limb (c) of the definition of Departed Manager Leaver; or
 - (iii) the Departed Manager being convicted of a criminal offence under limb (d) of the definition of Departed Manager Leaver.

Departed Manager: has the meaning given in the Investment Agreement.

Departed Manager Leaver: a Departed Manager:

- (a) who dies;
- (b) who breaches (i) any restrictive covenant in the service agreement, employment agreement or any other contract of employment between a Group Company and the Departed Manager which was in force immediately prior to the cessation of his employment or engagement with the Group or (ii) any restrictive covenant in clause 18 or Schedule 7 of the Investment Agreement, in each case notwithstanding that he is, at the Adoption Date, no longer an employee of or engaged by any Group Company;
- (c) who is found to have committed an act of fraud in the course of his employment or engagement with any Group Company notwithstanding that he is, at the Adoption Date, no longer an employee of or engaged by any Group Company; and/ or
- (d) who is convicted of any criminal offence (excluding an offence under road traffic legislation of which a custodial sentence is not imposed); and/or
- (e) in respect of which, clause 19.4 of the Investment Agreement applies to him.

Departed Manager Leaver Equity: has the meaning given in Article 13.9.2.

Departed Manager Leaver Notice: has the meaning given in in Article 13.9.2.

Departed Manager Leaver Price: has the meaning given in in Article 13.11.2.

director: a director of the Company, and includes any person occupying the position of director, by whatever name called.

distribution recipient: has the meaning given in Article 57.2.

document: includes, unless otherwise specified, any document sent or supplied in electronic form.

Drag-Along Notice: has the meaning given in Article 14.2.1.

Drag-Along Sale Documents: has the meaning given in Article 14.2.5.

Drag-Along Sale: has the meaning given in Article 14.1.

Drag-Along Securities: has the meaning given in Article 14.1.

Dragged Security Holders: has the meaning given in Article 14.1.

Drag Transferee: has the meaning given in Article 14.1.

Drag Triggering Sellers: has the meaning given in Article 14.1.

electronic form: has the meaning given in section 1168 of the Act.

eligible director: a director who would be entitled to vote on the matter at a meeting of directors (but excluding any director whose vote is not to be counted in respect of the particular matter).

Employee Trust: any trust established, with Investor Consent, to enable or facilitate the holding of Securities by, or for the benefit of, all or most of the bona fide employees of any Group Company.

Entry Equity Value: the total amount invested by the Lead Investor and any of its Investor Affiliates in connection with the Lead Investor's investment into any Group Company, up to and including an Exit, including but not limited to:

- (a) the cost of all Securities subscribed for by the Lead Investor or any of Investor Affiliates as at the date of the relevant investment; plus

- (b) any loans provided directly or indirectly by the Lead Investor and any of its Investor Affiliates to any director or employee of any member of the Group (including for the purposes of financing such director or employee's direct or indirect subscription for or acquisition of Securities) but excluding the Manager Subscription Loans; plus
- (c) any funds used to repay the costs of any Group Company; plus
- (d) any bona fide fees and expenses incurred, directly or indirectly, to an independent third party in connection with the Lead Investor's or an Investor Affiliate's investment into the Company and/or any Group Company.

Equity Securities: has the meaning given in section 560(1) of the Act.

Excess New Securities Commitment: has the meaning given in Article 44.5.5.

Excess Receipts: has the meaning given in Article 8.3.

Excluded Issue: any issue of Securities:

- (a) constituting Reserved Shares;
- (b) in connection with an IPO or Reorganisation Transaction;
- (c) in connection with an Acquisition Exchange Issue;
- (d) only to another Group Company;
- (e) to a third party, pursuant to any joint venture, partnership or other strategic transaction on arm's length terms;
- (f) to any third party in connection with the debt financing arrangements of the Group (including but not limited to the Debt Finance);
- (g) in circumstances where the board (with Investor Consent) determines that further funding is required for the Group; or
- (h) in connection with a Default Event.

Exit: a Sale, Asset Sale, IPO or Winding Up.

Exit Costs: such costs as referred to in clause 23.6 of the Investment Agreement.

Exit Deferred Consideration: any other cash actually received by the Lead Investor or any of its Investor Affiliates:

- (a) as an earnout or other form of contingent or deferred consideration in connection with an Exit, which, having regard to the substance of the Exit transaction as a whole, can reasonably be regarded as an addition to the cash paid at Exit; or
- (b) as a result of disposing any Retained Securities after an IPO following the expiry of any applicable lock-up period.

Exit Equity Value: the sum of:

- (a) as at an Exit, the aggregate amount of net cash that the Lead Investor or any of its Investor Affiliates has actually received (pursuant to and prior to such Exit including all Return of Proceeds received in cash); plus
- (b) any Exit Deferred Consideration,

each with respect to the Securities held by it (after payment of any costs, fees, advisory fees and taxes incurred, directly or indirectly, in connection with the Exit) including:

- (c) any monitoring, management, arrangement, exit or other fees paid by a Group Company to the Lead Investor or its Investor Affiliates as a result of their respective investments into the Group (but excluding: (i) the reimbursement by a Group Company of any bona fide out of pocket costs incurred by the Lead Investor, its Investor Affiliates or Investor Directors in connection with the monitoring of the Lead Investor's investment or the Investor Directors' participation in Board meetings and (ii) any bona fide agency fee paid to MCP); and
- (d) any cash proceeds actually received by the Lead Investor or any of its Investor Affiliates from loans provided by them directly or indirectly to any director or employee of any member of the Group for the purposes of financing such director or employee's direct or indirect subscription for or acquisition of Securities (but excluding the Manager Subscription Loans); and
- (e) any cash proceeds actually received by the Lead Investor or any of its Investor Affiliates pursuant to arrangements not on arm's length terms involving any Group Company and the Lead Investor or any of its Investor Affiliates including any remuneration paid to an Investor Director (but excluding: (i) the reimbursement by a Group Company of any bona fide out of pocket costs incurred by the Lead Investor, its Investor Affiliates or Investor Directors in connection with the monitoring of the Lead Investor's investment or the Investor Directors' participation in Board meetings and (ii) any bona fide agency fee paid to MCP).

Finally Determined: has the meaning given in the Investment Agreement.

Financing Documents: has the meaning given in the Investment Agreement.

Fourth Return Threshold: a Money Multiple of 3.00.

fully paid: in relation to a Share means that the nominal value and any premium to be paid to the Company in respect of that Share have been paid to the Company.

Fund: any fund, bank, company, unit trust, investment trust, investment company, limited, general or other partnership, industrial provident or friendly society, any collective investment scheme (as defined by the FSMA), any investment professional (as defined in article 19(5) of the Financial Services and Markets Act 2000 (Financial Promotion Order) 2005 (the "FPO")), any high net worth company, unincorporated association or partnership (as defined in article 49(2)(a) and (b) of the FPO) or any high value trust (as defined in article 49(6) of the FPO), any pension fund or insurance company or any person who is an authorised person under the FSMA.

Fund Entity: any company, limited partnership or other undertaking in which any Investor Affiliate has an interest, directly or indirectly.

FSMA: the Financial Services and Markets Act 2000.

Good Leaver: a Manager who becomes a Leaver by reason of:

- (a) his or her death;
- (b) long term illness or incapacity (whether physical or mental) or disability, including that of a spouse of a Leaver (other than due to drug or alcohol dependency); or
- (c) whom the Remuneration Committee, with Investor Consent (in its absolute discretion), determines such Manager to be a "**Good Leaver**".

Group: the Company, and/or any subsidiary undertaking of the Company from time to time and any New Holding Company and "Group Company" shall be construed accordingly.

Group Conflict Situation: in respect of each director, all or any of the following situations existing at any time while such person is a director:

- (a) being employed or otherwise engaged by any Group Company;
- (b) holding office, including (but not limited to) office as director, of any Group Company;
- (c) being a member of any pension scheme operated from time to time by any Group Company;
- (d) participating in any share option, bonus or other incentive schemes operated from time to time by any Group Company; and
- (e) participating in any benefit provided by an employee benefit trust of which the director is a beneficiary.

hard copy form: has the meaning given in section 1168 of the Act.

holder: in relation to Shares means the person whose name is entered in the register of members as the holder of the Shares.

Implied Exit Value: has the meaning given in the Investment Agreement.

Independent Accountant: has the meaning given in Article 13.6.6(b).

Investor Affiliate: in relation to the Lead Investor:

- (a) each member of the MCP Fund III Group;
- (b) any general partner, limited partner or other partner or trustee, nominee, custodian, operator or manager of, or investment adviser to, MCP Fund III or any member of the MCP Fund III Group;
- (c) any group undertaking of any general partner, limited partner or other partner trustee, nominee, custodian, operator or manager of, or investment adviser to, MCP Fund III or any member of the MCP Fund III Group;
- (d) any Fund which has the same general partner, limited partner or other partner trustee, nominee, operator, manager or investment adviser as MCP Fund III or any member of the MCP Fund III Group;
- (e) any Fund which is advised, or the assets of which (or some material part thereof) are managed (whether solely or jointly with others), by MCP Fund III or any member of the MCP Fund III Group;
- (f) any Fund in respect of which MCP Fund III or any member of the MCP Fund III Group is a general partner, manager or investment adviser; and
- (g) any Co investment Scheme of MCP Fund III or its investment adviser, manager, operator or nominee of any member of the MCP Fund III Group,

and, in each case, excluding any portfolio company thereof.

Investor Consent or Investor Direction: means the prior consent or direction:

- (a) in writing to the relevant Group Company from either an Investor Director or the Lead Investor (including by way of e-mail);
- (b) from the Lead Investor by signing a written resolution of the shareholders of the Company approving the relevant transaction or matter; or

- (c) from an Investor Director by signing a written resolution of the Board or the minutes of a quorate Board meeting or committee meeting approving the relevant transaction or matter.

Investor Director: has the meaning given in Article 9.1.1.

Investor Transferee:

- (a) any Investor Affiliate of the Lead Investor;
- (b) the beneficial owner of the relevant Securities;
- (c) any director or employee of any member of the Group (in each case, directly or indirectly) and/or an Employee Trust; or
- (d) on a distribution in kind or otherwise under the relevant partnership agreement or trust deed or other constitutional document(s) of a Fund, the partners of a limited partnership or the holders of units in a unit trust or the shareholders of, participants in, or holders of any other interest in, any Fund.

instrument: a document in hard copy form.

Intermediate Leaver: a Leaver who is neither a Good Leaver or a Bad Leaver or a Very Bad Leaver.

Investment Agreement: the agreement dated on the Adoption Date and made between (1) the Company; (2) the Lead Investor; (3) the Managers and (4) Loft Nominees Limited on that date (as amended, varied or supplemented from time to time in accordance with its terms).

Investor: a holder for the time being of A Ordinary Shares and “**Investors**” shall be construed accordingly.

Investor Director: has the meaning given in Article 9.1.

IPO: the admission of the whole of any class of the issued share capital of any Group Company or any New Holding Company to trading on a regulated market or other recognised investment exchange.

Lead Investor: Rafter Investco or such other party as may be nominated from time to time for that purpose in accordance with the Investment Agreement.

Leaver: any Manager who voluntarily or involuntarily ceases to be an employee, officer or director of (or consultant to) a Group Company (or who gives or receives a notice to this effect) and does not otherwise remain as an employee, officer or director (or consultant to) any Group Company

Leaver Equity: such number of Securities held by the Leaver as the Company may notify the Leaver (with Investor Direction) in accordance with Article 13.1.

Leaver Notice: has the meaning given in Article 13.2.

Leaver Price: has the meaning given in Article 13.7.2.

Lien Enforcement Notice: has the meaning given in Article 50.1.2.

LTIP: has the meaning given in the Investment Agreement.

LTIP Participant: has the meaning given in the Investment Agreement.

Managers: has the meaning given in the Investment Agreement.

Manager Loan Agreement: has the meaning given in the Investment Agreement.

Managers' Representative: has the meaning given in the Investment Agreement.

Market Value: the market value of the Leaver Equity or Departed Manager Leaver Equity (as the case may be), being the higher of (i) Cost and (ii) the price as determined by the Remuneration Committee (with Investor Consent) on the basis of an arm's length sale between a willing seller and a willing buyer of the whole issued share capital of the Company and all of the Securities and by:

- (a) taking into account (i) the economic rights attached to the Leaver Equity or Departed Manager Leaver Equity (as the case may be) and each other class of Security within the Group's capital structure; (ii) the business, operating and market position and the financial position and prospects of the Group; and (iii) the initial purchase price or subscription price of the Leaver Equity or Departed Manager Leaver Equity (as the case may be) (which shall be deemed to have been the Market Value as the date of such purchase or subscription);
- (b) not taking into account (i) whether the Leaver Equity or Departed Manager Leaver Equity (as the case may be) comprises a majority or minority interest in the Company; or (ii) the fact that the transferability of the Leaver Equity or Departed Manager Leaver Equity (as the case may be) is restricted by these Articles and/or the Investment Agreement; (iii) any other restrictions attaching to the Leaver Equity by the Transaction Documents..

MCP: Metric Capital Partners LLP or Metric Capital Partners Manco (Malta) Limited or Metric Capital Partners (Guernsey) Limited, in each case, in its capacity as investment advisor to MCP Funds, or any replacement, or successor, of either of them in that capacity.

MCP Fund III: MCP Private Capital Fund III SCSp, a special limited partnership (société en commandite spéciale) established under the laws of Luxembourg and registered with the Luxembourg Trade and Companies Registry (R.C.S. number B211579) and whose registered office is at 412F, Route d'Esch, L-1471, Luxembourg, Grand Duchy of Luxembourg or any continuation fund of MCP Fund III from time to time.

MCP Fund III Group: MCP Fund III and its subsidiary undertakings (including the Lead Investor) and/or parent undertakings, and any other subsidiary undertaking of any such parent undertaking (in each case whether direct or indirect) from time to time.

MCP Funds: funds managed, controlled and/or advised by MCP or its affiliates (such affiliates being any person that, directly or indirectly, controls, is controlled by, or is under common control with, MCP and/or any third party alternative investment fund managers of the MCP Funds), including, for the avoidance of doubt, MCP Fund III, but excludes any portfolio companies in which any MCP Fund has an interest or investment.

MCP Shareholder Loans: has the meaning given in the Investment Agreement.

Member of the Same Group: as regards any company, a company which is for the time being a holding company or a subsidiary of that company or a subsidiary of any such holding company.

Minimum Return Threshold: a Money Multiple of 2.0.

Money Multiple: the result of dividing the Exit Equity Value by the Entry Equity Value.

New Holder: has the meaning given to it in Article 14.3, Article 16.4, Article 17.6 and 15.3 (as applicable).

New Holding Company: any new holding company of the Company, formed for the purpose of facilitating a Reorganisation Transaction, a Refinancing or an IPO (excluding any holding company of the Company which is a special purpose vehicle utilised by the Lead Investor (and not any other Security Holder) to facilitate their direct or indirect investment in the Group).

New Issue Procedure: has the meaning given in Article 44.6.

New Issue: has the meaning given in Article 44.2.

New Securities: has the meaning given in Article 44.2.1.

Non-Dilutive Debt Securities: means a Debt Security which is a share issued other than in connection with an Accelerated Issue where such Debt Security is entitled to participate on a return of profits, capital or otherwise in a variable amount dependent on the value of the Group.

Nuveen Financing Facility Agreement: has the meaning given in the Investment Agreement.

Notification: has the meaning given in Article 16.2.4.

Observer: has the meaning given in Article 9.4.

Ordinary Shares: together, the A Ordinary Shares and the B Ordinary Shares.

Out of Pocket Holder: has the meaning given in Article 8.3.2.

paid: paid or credited as paid.

Parent Acceptance Period: has the meaning given in Article 17.2.4.

Parent Drag-Along Notice: has the meaning given in Article 15.2.1.

Parent Drag-Along Sale: has the meaning given in Article 15.1.

Parent Drag-Along Sale Documents: has the meaning given in Article 15.2.5.

Parent Drag-Along Securities: has the meaning given in Article 15.1.

Parent Dragged Security Holders: has the meaning given in Article 15.1.

Parent Drag Transferee: has the meaning given in Article 15.1.

Parent Drag Triggering Sellers: has the meaning given in Article 15.1.

Parent Notification: has the meaning given in Article 17.2.4.

Parent Tag-Along Notice: has the meaning given in Article 17.2.1

Parent Tag-Along Sale: has the meaning given in Article 17.1.

Parent Tag-Along Securities: has the meaning given in Article 17.1.

Parent Tag-Along Right: has the meaning given in Article 17.1.

Parent Tagging Security Holder: has the meaning given in Article 17.2.4.

Parent Tag Triggering Sellers: has the meaning given in Article 17.1.

Parent Tag Transferee: has the meaning given in Article 17.1.

participate: in relation to a directors' meeting, has the meaning given in Article 29.

Participating Security Holder: has the meaning given in Article 44.6.

Permitted Transferee: those persons as described in Article 11.

Pro-Rata Portion: in relation to each Security Holder:

- (a) for any New Issue of or including any Debt Securities (including an issue of Shares together with Debt Securities) where there is no Default Event, a proportion calculated by dividing:

- (i) the aggregate initial subscription (or in connection with an Accelerated Issue only the purchase price) paid by the Security Holder for all Securities (other than Shares designated as B Ordinary Shares) held by him, her or it plus the aggregate amount of interest accrued on all Debt Securities held by such Security Holder; by
 - (ii) the aggregate initial subscription (or in connection with an Accelerated Issue only the purchase price) paid for all Securities (other than those held by Group Companies or those held in treasury or Shares designated as B Ordinary Shares) then in issue plus the aggregate amount of interest accrued on all Debt Securities then in issue; or
- (b) for any other New Issue of Shares (which for these purposes shall exclude any issue of Shares together with Debt Securities) where there is no Default Event ongoing, a proportion calculated by dividing the number of all Shares (other than Shares designated as B Ordinary Shares,) occurs held by such Security Holder at the relevant time by the total number of Shares (other than Shares held by a Group Company or which are treasury shares or Shares designated as B Ordinary Shares) then in issue; or
- (c) for any issue of Securities in accordance with the terms of Article 44.4 following an Accelerated Issue, in respect of the portion in Article:
 - (i) 44.4.1(a) a proportion calculated by dividing the number of all Ordinary Shares held by such Security Holder at the relevant time by the total number of Ordinary Shares (other than Ordinary Shares held by a Group Company or which are treasury shares) then in issue;
 - (ii) 44.4.1(b) a proportion calculated by dividing:
 - (A) the aggregate initial subscription (or in connection with an Accelerated Issue only the purchase price) paid by the Security Holder for all Securities (other than Ordinary Shares) held by him or it plus the aggregate amount of interest accrued on all Debt Securities held by such Security Holder; by
 - (B) the aggregate initial subscription (or in connection with an Accelerated Issue only the purchase price) paid for all Securities (other than those held by Group Companies or those held in treasury or Ordinary Shares) then in issue plus the aggregate amount of interest accrued on all Debt Securities then in issue.

proxy notice: has the meaning given in Article 72.1.

Qualifying Person: has the meaning given in section 318 of the Act.

Recovering Holder: has the meaning given in Article 8.3.

Refinancing: has the meaning given in the Investment Agreement.

Restructuring Transaction: has the meaning given to it in the Investment Agreement.

Relevant Parties and Relevant Party: has the meaning given in Article 21.1.

Relevant Provisions: has the meaning given in Article 21.1.

Relevant Securities: all Securities held by a Defaulting Security Holder, or to which they are entitled, and any Securities formerly held by them which have been Transferred in breach of Article 12 (*Transfers of Securities*).

Relevant Transferee: has the meaning given to it in Articles 13.7.3 and 13.11.3 (as applicable).

Remaining New Securities: has the meaning given to it in Article 44.6.

Remaining Pro-Rata Portion: in relation to each Participating Security Holder, the proportion which is the lower of: (1) the proportion of the relevant class of Remaining New Securities which such Participating Security Holder committed to subscribe for or acquire pursuant to its relevant Acceptance Notice; and (2) the following proportion:

- (a) for any New Issue of or including any Debt Securities (including an issue of Shares together with Debt Securities) where there is no Default Event, a proportion calculated by dividing:
 - (i) the aggregate initial subscription (or in connection with an Accelerated Issue only) purchase price paid by the relevant Participating Security Holder for all Securities (other than Securities which are Remaining New Securities and (other than Shares designated as B Ordinary Shares) held by him/her plus the aggregate amount of interest accrued on all Debt Securities held by such Participating Security Holder; by
 - (ii) the aggregate initial subscription or (in connection with an Accelerated Issue only) purchase price paid for all Securities (other than those held by Group Companies, those held in treasury, Shares designated as B Ordinary Shares and those which are Remaining New Securities) then in issue to all Participating Security Holders plus the aggregate amount of interest accrued on all Debt Securities then in issue to Participating Security Holders; or
- (b) for any other New Issue of Shares where there is no Default Event (which for these purposes shall exclude any issue of Shares together with Debt Securities), a proportion calculated by dividing the number of all Shares (other than Shares which are Remaining New Securities or Shares designated as B Ordinary Shares) held by such Participating Security Holder at the relevant time by the total number of Shares (other than Shares which are issued to a Group Company, Remaining New Securities or treasury shares or B Ordinary Shares) then in issue to all Participating Security Holders; or
- (c) for any issue of Shares in accordance with the terms of Article 44.4 following an Accelerated Issue, a proportion calculated by dividing the number of all Ordinary Shares (other than Ordinary Shares which are Remaining New Securities) held by such Participating Security Holder at the relevant time by the total number of Ordinary Shares (other than Ordinary Shares which are issued to a Group Company, Remaining New Securities or treasury shares) then in issue to all Participating Security Holders.

Remuneration Committee: has the meaning given in the Investment Agreement.

Reorganisation Transaction: has the meaning given in the Investment Agreement.

Reserved Shares: has the meaning given in the Investment Agreement.

Restricted Person: any person who:

- (a) declines or fails to provide the Company (for itself and on behalf of the other holders of Securities) with such evidence as the Company and any such Security Holder (other than the Managers) requires for regulatory and compliance purposes in order to satisfy itself as to the identity of all persons proposed to have an interest in Securities;

- (b) is listed in any Sanction List;
- (c) is incorporated in (or is Controlled by entities that are incorporated in) a Sanctioned Jurisdiction; and/or
- (d) the Board believes to be a person with whom a financial institution subject to the laws and regulations of the United Kingdom and/or the United States would be acting reasonably in declining to enter into a client relationship with such person only on the basis of prevailing know-your-customer, sanctions, financial crime or other comparable legal or regulatory restrictions.

Return of Proceeds:

- (a) any return of proceeds, repayment or distribution of any amount by any Group Company (whether by way of interest, redemption, repayment, conversion, distribution, return of capital or otherwise) in respect of Securities which are held by persons who are not Group Companies; and
- (b) any proceeds paid or otherwise due in respect of an Exit or any Transfer of Securities which trigger a Tag-Along Sale or a Drag-Along Sale,

in each case to any Security Holder.

Sanctioned Jurisdiction: a country or territory:

- (a) that is listed in a Sanction List; and/or
- (b) in respect of which there is some form of financial or economic limitation on other persons or countries dealing with or making payments or deliveries to or receiving payments or deliveries from such country or territory, in terms of the applicable law.

Sanction List: any of the sanction lists of HM Treasury in the United Kingdom, the Bank of England, the European Union, the Office of Foreign Asset Control in the United States of America and/or the United Nations Security Council (each as amended, supplemented or substituted from time to time).

Share Capital Table: has the meaning given in the Investment Agreement.

Shares: the Ordinary Shares and any other shares of any class or series of capital stock or series of any securities (other than Debt Securities) or rights convertible into or exercisable or exchangeable for shares of any class or series of capital stock (or which are convertible into or exercisable or exchangeable for any security which is, in turn, convertible into or exercisable or exchangeable for shares of any class or series of capital stock) of the Company or any other Group Company from time to time, in each case having the rights and being subject to the restrictions set out in these Articles and “Share” means any one of them.

Sale: the sale or transfer of the Shares to one or more third parties as part of a single transaction or a series of related transactions (other than (i) as part of a Reorganisation Transaction or (ii) the transfer by an Investor to an Investor Affiliate) which results in such third parties (together with any person connected with or acting in concert with such third parties) being entitled to exercise a Controlling Interest.

Second Return Threshold: a Money Multiple of 2.25.

Securities: together, the Debt Securities and Shares.

Security Holder: any person, other than a Group Company, holding Securities.

Service Agreements: the service agreements entered into between the relevant Group Company and each Manager, as may be amended, supplemented, novated or replaced from time to time.

Shareholders: the holders of Shares and “**Shareholder**” means any one of them.

Start Date: the later of:

- (a) the date upon which the relevant Leaver Equity was subscribed for; and
- (b) the commencement of the Leaver’s employment, appointment or engagement with a Group Company.

Syndicatee: has the meaning given in Article 11.3.1(b).

Tag-Along Notice: has the meaning given in Article 16.2.1.

Tag-Along Right: has the meaning given in Article 16.1

Tag-Along Sale: has the meaning given in Article 16.1.

Tag Transferee: has the meaning given in Article 16.1.

Tag-Along Securities: has the meaning given in Article 16.1.

Tagging Security Holder: has the meaning given in Article 16.2.4.

Tag Triggering Sellers: has the meaning given in Article 16.1.

Tax: has the meaning given in the Investment Agreement.

Third Return Threshold: a Money Multiple of 2.66.

Transaction Documents: has the meaning given in the Investment Agreement.

transmittee: a person entitled to a Share by reason of the death or bankruptcy of a member or otherwise by operation of law.

Unvested Leaver Equity: shall mean Leaver Equity which is not Vested Leaver Equity.

Very Bad Leaver: any Leaver:

- (a) who breaches any restrictive covenant in clause 14 or 15 (Protection of the Company’s Business Interests) (in each case as the case may be) of his or her Service Agreement;
- (b) who breaches any restrictive covenant in clause 18 or Schedule 7 of the Investment Agreement; and/or
- (c) who commits an act of fraud in the course of his or her employment or engagement with any Group Company; and/or
- (d) in respect of which, clause 19.3 of the Investment Agreement applies to him/her.

Vested Leaver Equity: shall mean the Leaver Equity which has vested in accordance with Article 13.6.5.

Winding Up: a voluntary or involuntary distribution pursuant to a winding up, dissolution or liquidation of the Company or any New Holding Company (including following an Asset Sale).

writing: the representation or reproduction of words, symbols or other information in a visible form by any method or combination of methods, whether sent or supplied in electronic form or otherwise.

- 1.2 Save as otherwise specifically provided in these Articles, words and expressions contained in these Articles bear the same meaning as in the Act as in force on the date when these Articles become binding on the Company including, references to a “**company**”, “**holding company**”, “**subsidiary**”, “**parent undertaking**”, “**group undertaking**” and “**subsidiary undertaking**”.

1.3 In these Articles:

- 1.3.1 unless otherwise specified, reference to a **“person”** includes any natural person, individual, company, firm, corporation, partnership, foundation, association, organisation, trust or any undertaking (in each case whether or not having separate legal personality).
- 1.3.2 a reference to an **“Article”** is a reference to the relevant article of these Articles unless expressly provided otherwise.
- 1.3.3 unless expressly provided otherwise, a reference to a statute, statutory provision or subordinate legislation is a reference to it as it is in force from time to time, taking account of:
 - (a) any subordinate legislation from time to time made under it; and
 - (b) any amendment or re-enactment and includes any statute, statutory provision or subordinate legislation which it amends or re-enacts.
- 1.3.4 save where used in the definition of **“Employee Trust”**, **“employee”** and **“employees”** shall be deemed to include workers, consultants and non-executive directors, and references to **“contract of employment”**, **“employment arrangements”** and to **“commencement”** or **“termination”** of employment shall be deemed to include workers’ contracts, contracts for consultancy, letters of appointment and commencement or termination of workers’ contracts, consultancy contracts or letters of appointment, and references to summary dismissal shall be deemed to include a reference to termination of contracts without notice in accordance with their respective terms;
- 1.3.5 any phrase introduced by the terms “including”, “include”, “in particular” or any similar expression shall be construed as illustrative and shall not limit the sense of the words preceding those terms.
- 1.3.6 a **“connected person”** shall have the meaning attributed to it at the Adoption Date by sections 1122 and 1123 Corporation Tax Act 2010 and the words “connected with” shall be construed accordingly;
- 1.3.7 any statute or statutory provision shall be deemed to include any instrument, order, regulation or direction made or issued under it and any reference to any statute, statutory provision, regulations or rules of any regulatory body shall be construed as a reference to the same as it may have been, or may from time to time be, amended, modified, consolidated, re-enacted or replaced except to the extent that any amendment or modification made after the Adoption Date would increase any liability or impose any additional obligation under these Articles;
- 1.3.8 a regulatory body or agency shall be deemed to include any successor of such regulatory body or agency and shall be construed as a reference to the same;
- 1.3.9 any English legal term for any action, remedy, method of judicial proceeding, legal document, legal status, court, official or any legal concept or thing shall, in respect of any jurisdiction other than that of England, be deemed to include what most nearly approximates in that jurisdiction to the English legal term;
- 1.3.10 any time or date shall be construed as a reference to the time or date prevailing in England; and
- 1.3.11 any reference to a matter to be **“determined”** or to be referred for **“determination”**, shall mean that the matter is to be determined by an Independent Accountant as provided in Article 13.13.

- 1.4 Headings in the Articles are used for convenience only and shall not affect the construction or interpretation of these Articles.
- 1.5 In the event of there being any conflict or inconsistency between any provision in Part B of these Articles and any provision in Part C of these Articles, the provision in Part B shall prevail, whether or not the Part C provision is expressed to be subject to Part B.
- 1.6 If an Investor Director appoints an Alternate Director in accordance with Article 39 (*Directors – Alternate Directors*), any reference to an Investor Director shall be deemed to be a reference to his or her Alternate Director.
- 1.7 Where any Securities are held by a nominee, custodian or trustee for any person, that person shall (unless the context requires otherwise) be treated for the purposes of these Articles as the holder of those Securities and references to Securities being “**held by**” a person, to a person “**holding**” Securities or to a person who “**holds**” any such Securities, or equivalent formulations, shall be construed accordingly.
- 1.8 Any reference to a “**Transfer**” or “**transfer**” or Shares or Securities shall mean (i) any direct or indirect sale, transfer or other disposition (including by way of contractual or other arrangement which transfers the economic risk and reward or otherwise substantially mimics the effect of a sale, or by way of Encumbrance) of any Securities (including any voting rights attached thereto); (ii) any direction (by way of renunciation or otherwise) by a holder of Securities, or a person entitled to an issue or transfer of Securities, that Securities be issued or transferred to a person other than himself/herself; or (iii) any agreement to do any of the foregoing, provided that:
- 1.8.1 the transfer by any partner, unitholder, shareholder or other participant in, or operator, manager or custodian of, any Fund (a “**Fund Participant**”) (or by any nominee, custodian or trustee for any such Fund Participant) of any interest in such Fund to any person who is, or as a result of the transfer becomes, a Fund Participant;
 - 1.8.2 the creation (with Investor Consent) of any Encumbrance over any Securities;
 - 1.8.3 the assignment or transfer (with Investor Consent) of the beneficial ownership in any Securities registered in the name of an Investor or any nominee, custodian or trustee thereof to any Investor Affiliate or its nominee, custodian,
- shall not, and shall not be deemed to, be a transfer of any Securities for any purpose under the Investment Agreement or these Articles.
- 1.9 If there is any conflict between the provisions of these Articles and the Investment Agreement then the provisions of the Investment Agreement shall prevail.

2 Model articles

The relevant model articles (within the meaning of section 20 of the Act) are excluded.

3 Liability of members

The liability of the members is limited to the amount, if any, unpaid on the Shares held by them.

PART B

4 Shares

- 4.1 Except as provided otherwise in these Articles, the A Ordinary Shares and the B Ordinary Shares shall rank *pari passu* but they shall constitute separate classes of Shares.

- 4.2 Subject to these Articles, but without prejudice to the rights attached to any existing Share, the Company may, with Investor Consent or Investor Direction, issue Shares with such rights or restrictions as may be determined by ordinary resolution.
- 4.3 Subject to the terms of these Articles, the Company may, with Investor Consent or Investor Direction, issue Shares which are to be redeemed, or are liable to be redeemed at the option of the Company or the holder. The terms, conditions and manner of redemption of any such Shares shall be set out in the Articles.

5 Voting

- 5.1 The A Shareholders shall (in that capacity) be entitled to receive notice of, and attend, speak and vote at all general meetings of the Company and to vote on any written resolution of the Shareholders.
- 5.2 The B Ordinary Shares shall not carry any rights to attend, speak or vote at any general meetings of the Company.

6 Class consents

- 6.1 Whenever the Share capital of the Company is divided into different classes of Shares, the special rights attached to any class may only be varied or abrogated (either whilst the Company is a going concern or during or in contemplation of a winding up):
- 6.1.1 with the consent in writing of the holders of at least 50% in nominal value of the issued Shares of that class that are eligible to vote at a meeting of the holders of that class, save that the special rights attached to the A Ordinary Shares may only be varied or abrogated with Investor Consent; or
 - 6.1.2 by an ordinary resolution passed at a meeting of the holders of that class sanctioning the variation.
- 6.2 The allotment of, or the grant of rights to subscribe for, or to convert any securities into, Shares on the terms of these Articles which have preferential rights to one or more existing classes of Shares shall not constitute an alteration of the rights attached to any such existing classes of Shares.

7 Distributions

- 7.1 Any profits available for distribution which the Company determines (with Investor Consent) to distribute shall be distributed in accordance with Article 8 (*Return of Capital*).
- 7.2 Any distribution payable to the holders of A Ordinary Shares and B Ordinary Shares (in that capacity) pursuant to Article 7.1 shall be apportioned between such holders as if the distribution to the holders of A Ordinary Shares and B Ordinary Shares (in that capacity) was an amount being distributed as a distribution in accordance with Article 8 (*Return of Capital*).

8 Return of capital

- 8.1 Subject to the terms of any new class of Securities issued following the Adoption Date on the terms permitted by these Articles or the Investment Agreement, including subject to Articles 8.6 and 8.7, any Return of Proceeds to the Security Holders shall be distributed or be payable to the Security Holders in the following order of priority (in each case: (i) after payment of any Exit Costs where such distribution or payment is in connection with an Exit or Refinancing; and (ii) subject to compliance with any Debt Finance in place at the relevant time):
- 8.1.1 first, pro rata to each holder of MCP Shareholder Loans (whether principal or return) outstanding in respect of such Securities in accordance with the contracts, terms and conditions regulating such Securities (as applicable);

- 8.1.2 second, to each eligible LTIP Participant in respect of any cash bonus payable to the eligible LTIP Participant in accordance with, and subject to, the terms of the LTIP; and
- 8.1.3 thirdly, any surplus proceeds available shall be distributed to the holders of the Ordinary Shares as follows:
- (a) while the Money Multiple is below the Minimum Return Threshold:
 - (i) 95 per cent. to the holders of A Ordinary Shares, pro rata to their holding (by number) of A Ordinary Shares; and
 - (ii) 5 per cent. to the holders of B Ordinary Shares, pro rata to their holding (by number) of B Ordinary Shares;
 - (b) thereafter, and while the Money Multiple is equal to or above the Minimum Return Threshold but below the Second Return Threshold:
 - (i) 87.5 per cent. to the holders of A Ordinary Shares, pro rata to their holding (by number) of A Ordinary Shares; and
 - (ii) 12.5 per cent. to the holders of B Ordinary Shares, pro rata to their holding (by number) of B Ordinary Shares;
 - (c) thereafter, and while the Money Multiple is equal to or above the Second Return Threshold but below the Third Return Threshold:
 - (i) 82.5 per cent. to the holders of A Ordinary Shares, pro rata to their holding (by number) of A Ordinary Shares; and
 - (ii) 17.5 per cent. to the holders of B Ordinary Shares, pro rata to their holding (by number) of B Ordinary Shares; and
 - (d) thereafter, and while the Money Multiple is equal to or above the Third Return Threshold but below the Fourth Return Threshold:
 - (i) 77.5 per cent. to the holders of A Ordinary Shares, pro rata to their holding (by number) of A Ordinary Shares; and
 - (ii) 22.5 per cent. to the holders of B Ordinary Shares, pro rata to their holding (by number) of B Ordinary Shares; and
 - (e) thereafter, and while the Money Multiple is equal to or above the Fourth Return Threshold:
 - (i) 72.5 per cent. to the holders of A Ordinary Shares, pro rata to their holding (by number) of A Ordinary Shares; and
 - (ii) 27.5 per cent. to the holders of B Ordinary Shares, pro rata to their holding (by number) of B Ordinary Shares.
- 8.2 To the extent any Exit Deferred Consideration is actually received by the Lead Investor or any of its Investor Affiliates at any time following an Exit, “**Exit Equity Value**” shall be adjusted accordingly and, to the extent required pursuant to Article 8.1.3, an additional payment shall be made to the Security Holders in accordance with Article 8.1.3.
- 8.3 Subject to Article 8.4 and Article 8.5, if a holder of any Securities (a “**Recovering Holder**”) receives any Return of Proceeds where any such amount is in excess of the amount the Recovering Holder would have been entitled to receive in respect of its holding of Securities

had such amounts been distributed, redeemed or paid in accordance with Article 8.1 (the “**Excess Receipts**”), including upon receipt of any Exit Deferred Consideration, then:

- 8.3.1 the Recovering Holder shall, within three (3) Business Days, notify details of such receipt, repayment or payment to the Company (and will use reasonable efforts to also directly notify the Out of Pocket Holder(s) directly) and the Company shall within three (3) Business Days of receipt of such notice, notify each Out of Pocket Holder (as defined below) of such receipt, repayment or payment; and
 - 8.3.2 the Recovering Holder shall, within three (3) Business Days of demand by any Security Holder (or a demand made by the Company on his or her behalf) who, had the Excess Receipts been distributed in accordance with Article 8.1, would have received a greater Return of Proceeds than he has actually received (each an “**Out of Pocket Holder**”), account to any such Out of Pocket Holder(s) for any such amounts of Excess Receipts. If, in any circumstances, there is more than one Out of Pocket Holder, the Recovering Holder(s) shall account to the Out of Pocket Holders pro rata to the holdings of each Out of Pocket Holder of the relevant class of Security in respect of which such holders have received a lesser amount of the proceeds than they would otherwise have been entitled pursuant to Article 8.1.
- 8.4 No payment shall be made to any Security Holder pursuant to Article 8.2 to the extent that any such payment would result in such Security Holder receiving any Return of Proceeds that is in excess of any amounts that such holder of Securities is entitled to receive pursuant to Article 8.1 from the proceeds available.
- 8.5 In the event of an Exit where the Lead Investor (acting reasonably) considers that an Excess Receipt is likely to arise following such Exit, the parties agree to use reasonable endeavours acting in good faith to agree a mechanism within the transaction documents relating to such Exit whereby such amounts as would otherwise be Excess Receipts are paid directly to the persons who would otherwise be Out of Pocket Holders, and such mechanism may include, by way of illustration only, the use of a paying agent.
- 8.6 In the event that any Shares or Non-Dilutive Debt Securities are issued other than on an Accelerated Issue (“**Non-Dilutive Securities**”), the parties agree (and agree to procure) that to the extent that there are any surplus proceeds available for distribution to the holders of the Non-Dilutive Securities and Ordinary Shares after distributions or payments have been made to the holders of and in respect of:
- 8.6.1 any Debt Securities (other than Non-Dilutive Debt Securities);
 - 8.6.2 the MCP Shareholder Loans; and
 - 8.6.3 the LTIP,
- the distribution of any such surplus to the holders of the Non-Dilutive Securities shall not dilute, reduce or otherwise impact the entitlement of the holders of the B Ordinary Shares, as set out in Article 8.1.3, and for the avoidance of doubt, notwithstanding any purported rights attaching to those Non-Dilutive Securities to the contrary, such Non-Dilutive Securities shall be entitled only to participate in amounts which but for the issuances of the Non-Dilutive Securities would have been available for distribution to the holders of A Ordinary Shares and not the holders of B Ordinary Shares.
- 8.7 The Shareholders agree (and agree to procure) that other than on an Accelerated Issue, any Debt Securities issued shall rank in priority to the Ordinary Shares (without prejudice to Article 8.6 as it relates to Non-Dilutive Debt Securities) and shall not purport to rank ahead of the B Ordinary Shares, but not the A Ordinary Shares (in whole or in part).

9 The Board

9.1 The holders of the A Ordinary Shares (acting jointly) shall be entitled from time to time, in each case by Investor Direction (which shall take effect on the date specified in the notice):

9.1.1 to appoint to and remove from the Board and the board of any Group Company any number of persons as directors (in their sole discretion), whom they shall designate as the “**Investor Directors**” (and, each, an “**Investor Director**”), and to appoint and remove any replacements thereof;

9.1.2 to appoint to and remove from the Board, one person as a director, whom they shall designate as the “**Chairperson**”, and to appoint and remove any replacements thereof; and

9.1.3 to appoint to and remove from the Board, such other persons as directors as they determine, and to appoint and remove any replacements thereof.

9.2 Any appointment or removal pursuant to Article 9.1 shall be made by notice in writing from the Lead Investor (or such other person as the Lead Investor may direct) to the Company and shall take effect immediately on receipt (or deemed receipt) by the Company or, if later, on such date (if any) as may be specified in the notice.

9.3 Upon written request from the Lead Investor, the Company shall procure that any Investor Director is forthwith appointed as a director of any other Group Company indicated in such request.

9.4 The holders of the A Ordinary Shares (acting jointly) shall be entitled to appoint one or more observers to attend and speak at, but not vote at, any meetings of the Board (an “**Observer**”). An Observer shall be entitled to:

9.4.1 receive notice of all meetings of the directors (and committees of directors) of each Group Company;

9.4.2 receive copies of all board papers as if he were a director of each such Group Company; and

9.4.3 attend, propose resolutions and speak at (but not vote) at any meeting of the directors (and committees of directors) of each Group Company.

9.5 As regards quorums:

9.5.1 No meeting of the directors shall be quorate unless at least two directors (or a duly appointed alternate director of such persons) are present which must include at least one Investor Director, save that if:

(a) there is no Investor Director in office for the time being;

(b) such Investor Director has, in respect of any particular meeting (or part of a meeting), otherwise agreed in writing ahead of such meeting; or

(c) such Investor Director is not, in respect of any particular meeting (or part of a meeting), an eligible director;

the provisions of Article 30.2 shall apply. If the necessary quorum is not present within 30 minutes from the time appointed for the meeting or if, during a meeting, such quorum ceases to be present, Article 30.3 shall apply.

9.5.2 The quorum for any general meeting of the Company shall be two (2) Qualifying Persons. No meeting of the members shall be quorate unless those Qualifying Persons present include (whether in person or by a duly authorised representative

or a proxy) at least one holder of A Ordinary Shares represented by an Investor Director or a representative of the Lead Investor present in person or by proxy. If the necessary quorum is not present within 30 minutes from the time appointed for the meeting or if during the meeting a quorum ceases to be present for a period exceeding 10 minutes, Article 68.1 shall apply.

10 Transfer of shares - general

- 10.1 No Share shall be transferred, and the directors shall not register any Transfer of Shares, other than in accordance with these Articles and any Transfer or purported Transfer of any Share made otherwise than in accordance with these Articles shall be void and of no effect whatsoever.
- 10.2 Shares may only be transferred:
- 10.2.1 in accordance with Article 11 (*Permitted Transfers*);
 - 10.2.2 pursuant to a Leaver Notice or Departed Manager Leaver Notice in accordance with Article 13 (*Compulsory Transfers*); and
 - 10.2.3 pursuant to, and in accordance with, Article 14 (*Drag Along*), Article 15 (*Parent Drag Along*) Article 16 (*Tag Along*) and Article 17 (*Parent Tag Along*).
- 10.3 Notwithstanding any other provision of these Articles, the directors shall not register a Transfer of Shares:
- 10.3.1 if they suspect that the proposed Transfer may be fraudulent;
 - 10.3.2 to any person who is less than 18 years of age, bankrupt and/or the directors reasonably believe does not have) legal capacity to hold and/or Transfer such Shares or to comply with these Articles;
 - 10.3.3 (except with Investor Consent) if the Shares are not fully paid;
 - 10.3.4 if the instrument of Transfer is not either duly stamped or duly certified (or otherwise shown to the satisfaction of the directors to be exempt from stamp duty); or
 - 10.3.5 (except with Investor Consent) if the transferee (not being a party to the Investment Agreement, whether as an original party or by having executed a Deed of Adherence) has not, in a legally binding manner, entered into and delivered to the Company a Deed of Adherence.
- 10.4 Where any Share is transferred to a Shareholder, such Share shall, if so required by the Lead Investor, on and from the time of registration of the transfer of that Share in the register of members of the Company, be immediately and automatically (without resolution of the members or directors) redesignated as a Share of the same class as the Shares already held by such Shareholder.

11 Permitted Transfers

11.1 All Security Holders

- 11.1.1 Any Security Holder shall or may (as applicable) Transfer its Securities to the extent required or permitted pursuant Article 14 (*Drag Along*), Article 15 (*Parent Drag Along*) Article 16 (*Tag Along*) and Article 17 (*Parent Tag Along*), pursuant to a Reorganisation Transaction and/or pursuant to an Exit or Refinancing.
- 11.1.2 Other than with Investor Consent, no Security Holder may Transfer Securities to a Restricted Person.

11.2 Group Companies

11.2.1 Each relevant Group Company:

- (a) may Transfer Securities held by it with Investor Consent;
- (b) shall be obliged to register any Transfer of Securities required or permitted pursuant to, and in each case carried out in accordance with, the provisions of these Articles or the Investment Agreement; and
- (c) shall not register a Transfer of Securities unless such Transfer of Securities is required or permitted pursuant to, and in each case carried out in accordance with, the provisions of these Articles or the Investment Agreement.

11.3 Lead Investor

11.3.1 The Lead Investor and its Investor Transferees may Transfer their Securities:

- (a) to an Investor Transferee;
- (b) to any person(s) (each a "**Syndicatee**") provided that a MCP Fund holds a Controlling Interest in the Company;
- (c) to a Group Company;
- (d) to any Manager, the Chairperson and/or any actual or prospective employee, director, consultant or member of the management team of any Group Company;
- (e) to any other person, subject to Article 14 (*Drag Along*), Article 15 (*Parent Drag Along*) Article 16 (*Tag Along*) and Article 17 (*Parent Tag Along*);
- (f) as otherwise expressly permitted by the Investment Agreement.

11.4 Managers

11.4.1 Any Manager may Transfer his/her Securities:

- (a) where required or permitted pursuant to the provisions of Article 11.1.1; or
- (b) where required or permitted pursuant to the provisions of Article 13 (*Compulsory Transfer*); or
- (c) with prior Investor Consent.

11.4.2 Save with Investor Consent, no transfer of a B Ordinary Share shall be permitted pursuant to this Article 11.4 if:

- (a) the B Ordinary Share is the subject of a Leaver Notice or Departed Manager Notice, a Drag Along Notice or a Parent Drag-Along Notice; or
- (b) the proposed transferor is a Leaver or a Departed Manager Leaver.

11.5 Where B Ordinary Shares are held by the trustee(s) of an Employee Trust or held by a nominee or custodian and any such person ceases to be a trustee of the Employee Trust, nominee or custodian, such person shall promptly notify the Company and the Investors of such cessation and shall, upon or within 10 Business Days of such cessation, transfer such B Ordinary Shares (as applicable) to a transferee permitted under Article 11.6.1 for no consideration.

11.6 Any B Ordinary Shares held by an Employee Trust, nominee or custodian may be transferred:

- 11.6.1 on a change of trustee(s), to the trustee(s) for the time being of that Employee Trust;
- 11.6.2 (with Investor Consent), to any beneficiary of that Employee Trust; or
- 11.6.3 on a change of nominee or custodian, to another nominee (with Investor Consent).

11.7 Cessation of Investor Transferees

Where any person to whom Securities have been transferred or issued pursuant to such person being an Investor Transferee of a Lead Investor (the relevant Investor, being the **"Original Holder"** of the relevant Investor Transferee):

- 11.7.1 ceases to be an Investor Transferee of the relevant Original Holder; and/or
- 11.7.2 makes a resolution for its winding up, makes an arrangement or composition with its creditors or makes an application to a court of competent jurisdiction for protection from its creditors or an administration or winding up order is made or an administrator or receiver is appointed in relation to it (or, in the case of an individual is declared bankrupt or files for bankruptcy),

it shall immediately transfer all Securities held by it to the relevant Original Holder or to such other person as permitted by Articles 11.1.2 and 11.3 and, prior to such transfer, the provisions of Article 12 shall apply.

12 Transfer Provisions - Defaulting Security Holders and Evidence of Compliance

- 12.1 The Company shall immediately on an Investor Direction, or may with Investor Consent, request any Security Holder to provide to the Company any information or evidence relevant to considering whether a purported Transfer of Securities is in breach of these Articles. If such information or evidence is not provided within ten (10) Business Days of any request as satisfies the Company (in its absolute discretion, acting reasonably) that a purported Transfer of Securities is not in breach of these Articles the Board shall, upon receipt of an Investor Direction or otherwise with Investor Consent, notify the relevant Security Holder (the **"Defaulting Security Holder"**) that a breach of Article 11 (*Permitted Transfers*) or otherwise has occurred, whereupon:

- 12.1.1 the Company shall refuse to register the purported Transfer (other than with Investor Consent);
- 12.1.2 the Relevant Securities shall cease to confer on the holder thereof any rights in relation to them and such holder shall be deemed to have waived and released all the voting rights attached to the Relevant Securities; and
- 12.1.3 the purported Transferee shall have no rights or privileges in respect of such Securities or these Articles and in particular:
 - (a) with respect to the Relevant Securities, the purported Transferee shall not be counted in determining the total number of votes which may be cast at any such meeting, or required for the purposes of a written resolution of any Shareholders or any class of Shareholders, or for the purposes of any other consent required under the constitutional documents; and
 - (b) the purported Transferee shall cease to have (and hereby waive) any rights of pre-emption with respect to the Relevant Securities on any New Issues pursuant to these Articles or otherwise.

- 12.2 The Parties agree that the Company shall be entitled to amend and update the Share Capital Table at any time to take account of any Transfer (including any buyback) of Securities

permitted by this Article 12 (*Permitted Transfers*) and each Shareholder hereby consents to such amendments.

13 Compulsory Transfers - Leavers

- 13.1 Save as otherwise agreed in writing between the Lead Investor and a Manager (including in such Manager's Deed of Adherence), the provisions set out in this Article 13 shall apply to any Manager in respect of all Securities held by him/her.
- 13.2 Upon a Manager becoming a Leaver, the Lead Investor may direct the Company to (and upon such direction, the Company shall) serve a notice (or succession of notices) (each a "**Leaver Notice**") on such Leaver within 12 months of the Cessation Date notifying them that they have been deemed to have offered all or some the Securities held by the Leaver ("**Leaver Equity**") as set out in the Leaver Notice to any of the following person(s) as may be specified in the Leaver Notice (as determined with prior Investor Consent):
- 13.2.1 another current or prospective director, officer, employee or consultant of a Group Company (including a Manager) (but excluding the Leaver or an Investor Director or any Chairperson or non-executive director);;
 - 13.2.2 an Employee Trust or a nominee, custodian or trustee or other warehousing vehicle, pending nomination of a person pursuant to Article 13.2.1 above;
 - 13.2.3 the Company by way of share buyback or pursuant to a capital reduction in accordance with the Act;
 - 13.2.4 the Lead Investor, an Investor Affiliate of the Lead Investor or another person nominated by the Lead Investor, pending nomination of a person pursuant to Articles 13.2.1 to 13.2.3 above; and/or
 - 13.2.5 to another person as nominated by the Remuneration Committee (with Investor Consent), pending nomination of a person pursuant to Articles 13.2.1 to 13.2.3 above.
- 13.3 On receipt of any Leaver Notice, such Leaver who has received the Leaver Notice shall be bound to Transfer the Leaver Equity at the price agreed or determined in accordance with this Article 13.
- 13.4 Completion of the sale and purchase of the Leaver Equity shall take place on the date specified in the Leaver Notice (or if there is a dispute as to the price payable for the Leaver Equity, within 10 Business Days of the date on which the price for the Leaver Equity is agreed or determined in accordance with this Article 13), whereupon the Leaver shall transfer the Leaver Equity to the person(s) specified in the Leaver Notice and deliver the relevant certificates (or an indemnity in respect of any missing certificates in a form reasonably satisfactory to the Board) against payment of the consideration for the Leaver Equity.
- 13.5 To the extent that any Leaver Equity is Transferred to the Company from time to time, the Company shall, upon an Investor Direction, cancel such Leaver Equity in accordance with the terms set out in such Investor Direction, and each Security Holder hereby waives any and all rights it has from time to time to have any of its Leaver Equity cancelled, redeemed or repurchased in such circumstances.
- 13.6 **Leaver Price and Vesting**
- 13.6.1 If the Leaver is a Good Leaver, the price payable to the Leaver for the Leaver Equity shall be the Market Value of the Leaver Equity as at the Cessation Date.
 - 13.6.2 If the Leaver is an Intermediate Leaver, the price payable to the Leaver for the Leaver Equity shall be:

- (a) the Market Value of the Vested Leaver Equity; and
 - (b) the lower of Cost and Market Value of the Unvested Leaver Equity,
- in each case, as at the Cessation Date.

13.6.3 If the Leaver is a Bad Leaver, the price payable to the Leaver for the Leaver Equity (whether vested or unvested) will be the lower of Cost and the Market Value of the Leaver Equity, as at the Cessation Date.

13.6.4 If the Leaver is a Very Bad Leaver, the price payable to the Leaver for the Leaver Equity will be the aggregate sum of £1.00.

13.6.5 The Leaver Equity held by a Leaver shall vest on a straight line daily basis (on the basis of a 365 day year) such that:

- (a) 20% shall be vested on the Start Date;
- (b) 30% shall be vested on the first anniversary of the Start Date;
- (c) 40% shall be vested on the third anniversary of the Start Date;
- (d) 60% shall be vested on the fourth anniversary of the Start Date; and
- (e) 80% shall be vested on the fifth anniversary of the Start Date,

provided that: (i) vesting of any Leaver Equity held by any Manager pursuant to Article 13.6.5 shall cease from the Cessation Date of the relevant Manager; and (ii) on an Exit (excluding a Refinancing or Restructuring Transaction) all of the Leaver Equity held by any Manager (who is not a Leaver) which has not vested shall be deemed to be vested.

13.6.6 The Market Value of the Leaver Equity will be determined by the Remuneration Committee (with Investor Consent). Notwithstanding the foregoing, if a Leaver disputes in writing the Market Value as determined by the Remuneration Committee (with Investor Consent), Market Value shall be determined:

- (a) if an Independent Accountant has determined a value for a class of Securities in the 12 week period prior to the relevant Cessation Date, by dividing the aggregate value so certified for that class of Securities by the number of Securities of that class issued, multiplied by the number of Leaver Equity of that same class; and/or
- (b) a firm of independent accountants appointed by the Company (the **"Independent Accountant"**).

13.7 **Payment**

13.7.1 Upon any redemption, repurchase or Transfer of Leaver Equity to any other party in accordance with this Article 13, the Company shall procure that the amount due for such Leaver Equity shall be paid by the Company (if redemption) or by, or on behalf of, the relevant transferee (if a Transfer) to the Leaver.

13.7.2 Notwithstanding any other provision of these Articles, the amount due to the Leaver for any Leaver Equity (such amount being the **"Leaver Price"**) may (with prior Investor Consent) be:

- (a) reduced by any outstanding non-ordinary course payments made by the Group to the Leaver to assist the Leaver in funding the subscription of the Leaver Equity;

- (b) deferred if a Claim exists until such date the Claim is Finally Determined, provided that the Lead Investor or an Investor Affiliate or any Group Company (as applicable) issue and serve legal proceedings in respect of such Claim on the Leaver within six (6) months of determination of the Leaver Price;
- (c) reduced by an amount equal to the sum payable by a Leaver to the Lead Investor or an Investor Affiliate or any Group Company (as applicable) in respect of a Claim that is Finally Determined (if any);
- (d) where the Leaver is a Good Leaver or an Intermediate Leaver:
 - (i) (i) where any payments made by the Group to the Leaver to assist the Leaver in funding the subscription of the Leaver Equity including pursuant to a Manager Loan Agreement (as the case may be) and (ii) to the extent the Leaver Price is in excess of Cost, that excess part may be satisfied by the issue by the Company or another Group Company of a loan note with a coupon at the rate of 3 per cent. above the base rate from time to time of the Company's principle bankers of the Leaver Price net of any Tax payable by that Leaver on the Leaver Equity; or
 - (ii) where no payments have been made by the Group to the Leaver to assist the Leaver in funding the subscription of the Leaver Equity, satisfied by the issue by the Company or another Group Company of a loan note with a coupon at the rate of 3 per cent. above the base rate from time to time of the Company's principle bankers of the Leaver Price net of any Tax payable by that Leaver on the Leaver Equity; or
- (e) where the Leaver is a Bad Leaver or a Very Bad Leaver, satisfied by the issue by the Company or another Group Company of a zero coupon loan note which shall be repayable upon an Exit.

13.7.3 In the event that a Leaver has Transferred Leaver Equity at Market Value to a person (the "**Relevant Transferee**") pursuant to this Article 13 (due to such Leaver being a Good Leaver or an Intermediate Leaver or a Bad Leaver) and such Leaver subsequently becomes a Very Bad Leaver, such Leaver shall, on demand, pay to the Relevant Transferee of such Leaver Equity an amount equal to the difference between: (1) the Leaver Price paid by the Relevant Transferee for such Leaver Equity; and (2) £1.00.

13.8 **Waiver of Rights and Exercise of Votes Post Cessation Date**

- 13.8.1 Immediately upon a Manager becoming a Leaver, unless otherwise determined by Investor Consent or Investor Direction:
- (a) the Leaver shall be deemed to have waived and released (and for the avoidance of doubt, the Leaver hereby undertakes irrevocably not to exercise) all the voting and other rights (including any right to participate in pre-emptive or other offerings of Securities but excluding his or her rights pursuant to Article 8 (*Return of Capital*)) attached to any Leaver Equity held by him or which he and/or his related holders may benefit from in connection with their holding of Securities;
 - (b) the votes of the Leaver attaching to the Leaver Equity shall not be counted in determining the total number of votes which may be cast at any such meeting of the Shareholders, or required for the purposes of a written

resolution of any Shareholders or any class of Shareholders, or for the purposes of any other consent required under the Transaction Documents; and

- (c) to the extent applicable, the Leaver shall immediately resign from any board, officer or committee position(s) of any Group Company.

13.8.2 Any and all rights attached to the Leaver Equity shall be deemed to transfer to the relevant Transferee(s) upon the payment of the Leaver Price in accordance with this Article and all rights in the Leaver Equity shall be reinstated in favour of such Transferee.

13.8.3 Notwithstanding any other provision of these Articles or the Investment Agreement, unless otherwise determined by Investor Consent, if any Securities are retained by a Leaver at any time following completion of the transfer pursuant to the Leaver Notice:

- (a) such Securities will be deemed to vote in the same way as the Lead Investor or their Investor Transferees on any resolutions and will remain subject to the terms of these Articles and the Investment Agreement, including, without limitation, the restrictions on Transfer set out in these Articles and the Investment Agreement; and
- (b) the Leaver shall take such actions as directed by the Lead Investor in respect of such Securities, provided that such actions would not result in the relevant Leaver being disproportionately adversely impacted by such action as compared to all other holders of the same class of Securities.

13.9 **Departed Manager Compulsory Transfer**

13.9.1 Save as otherwise agreed in writing between the Lead Investor and the Departed Manager (including in such Departed Manager's Deed of Adherence), the provisions set out in Articles 13.9 to 13.13 (inclusive) shall apply to the Departed Manager in respect of all Securities held by him.

13.9.2 Upon the Departed Manager becoming a Departed Manager Leaver, the Lead Investor may direct the Company to (and upon such direction, the Company shall) serve a notice (or succession of notices) (a "**Departed Manager Leaver Notice**") on the Departed Manager Leaver within 12 months of the Departed Manager Cessation Date notifying him that he has been deemed to have offered all or some the Securities held by him ("**Departed Manager Leaver Equity**") as set out in the Departed Manager Leaver Notice to any of the following person(s) as may be specified in the Departed Manager Leaver Notice (as determined with prior Investor Consent):

- (a) another current or prospective director, officer, employee or consultant of a Group Company (including a Manager) (but excluding the Departed Manager Leaver or an Investor Director or a Chairperson or a non-executive director);
- (b) an Employee Trust or a nominee, custodian or trustee or other warehousing vehicle, pending nomination of a person pursuant to Article (a) above;
- (c) the Company by way of share buyback or pursuant to a capital reduction in accordance with the Act;

- (d) the Lead Investor, an Investor Affiliate of the Lead Investor or another person nominated by the Lead Investor, pending nomination of a person pursuant to Articles (a) to (c) above; and/or
 - (e) to another person as nominated by the Remuneration Committee (with Investor Consent), pending nomination of a person pursuant to Articles (a) to (c) above.
- 13.9.3 On receipt of any Departed Manager Leaver Notice, the Departed Manager Leaver shall be bound to Transfer the Departed Manager Leaver Equity at the price agreed or determined in accordance with Article 13.10.
- 13.9.4 Completion of the sale and purchase of the Departed Manager Leaver Equity shall take place on the date specified in the Departed Manager Leaver Notice (or if there is a dispute as to the price payable for the Departed Manager Leaver Equity, within 10 Business Days of the date on which the price for the Departed Manager Leaver Equity is agreed or determined in accordance with Articles 13.9 to 13.13 (inclusive)), whereupon the Departed Manager Leaver shall transfer the Departed Manager Leaver Equity to the person(s) specified in the Departed Manager Leaver Notice and deliver the relevant certificates (or an indemnity in respect of any missing certificates in a form reasonably satisfactory to the Board) against payment of the consideration for the Departed Manager Leaver Equity.
- 13.9.5 To the extent that any Departed Manager Leaver Equity is Transferred to the Company from time to time, the Company shall, upon an Investor Direction, cancel such Departed Manager Leaver Equity in accordance with the terms set out in such Investor Direction, and each Security Holder hereby waives any and all rights it has from time to time to have any of its Departed Manager Leaver Equity cancelled, redeemed or repurchased in such circumstances.

13.10 **Departed Manager Leaver Price**

- 13.10.1 If the Departed Manager is a Departed Manager Leaver under limb (a) of the definition of Departed Manager Leaver, the price payable to the Departed Manager for the Departed Manager Leaver Equity shall be, the Market Value of the Departed Manager Leaver Equity as at the Departed Manager Cessation Date.
- 13.10.2 If the Departed Manager is a Departed Manager Leaver under limbs (b) and/or (c) of the definition of Departed Manager Leaver the price payable to the Departed Manager Leaver for the Departed Manager Leaver Equity will be, the aggregate sum of £1.00.
- 13.10.3 If the Departed Manager is a Departed Manager Leaver under limb (d) or (e) of the definition of Departed Manager Leaver the price payable to the Departed Manager Leaver for the Departed Manager Leaver Equity will be, the lower of Cost and the Market Value of the Departed Manager Leaver Equity, as at the Departed Manager Cessation Date.
- 13.10.4 The Market Value of the Departed Manager Leaver Equity will be determined by the Remuneration Committee (with Investor Consent). Notwithstanding the foregoing, if a Departed Manager Leaver disputes in writing the Market Value as determined by the Remuneration Committee (with Investor Consent), Market Value shall be determined:
- (a) if an Independent Accountant has determined a value for a class of Securities in the 12 week period prior to the relevant Departed Manager Cessation Date, by dividing the aggregate value so certified for that class

of Securities by the number of Securities of that class issued, multiplied by the number of Departed Manager Leaver Equity of that same class; and/or

(b) the Independent Accountant.

13.11 Payment

13.11.1 Upon any redemption, repurchase or Transfer of any Departed Manager Leaver Equity to any other party in accordance with this Article, the Company shall procure that the amount due for such Departed Manager Leaver Equity shall be paid by the Company (if redemption) or by, or on behalf of, the relevant transferee (if a Transfer) to the Departed Manager Leaver.

13.11.2 Notwithstanding any other provision of these Articles, the amount due to the Departed Manager Leaver for any Departed Manager Leaver Equity (such amount being the “**Departed Manager Leaver Price**”) may (with prior Investor Consent) be:

- (a) reduced by any outstanding non-ordinary course payments made by the Group to the Departed Manager Leaver to assist the Departed Manager Leaver in funding the subscription of the Departed Manager Leaver Equity;
- (b) deferred if a Claim exists until such date the Claim is Finally Determined, provided that the Lead Investor or an Investor Affiliate or any Group Company (as applicable) issue and serve legal proceedings in respect of such Claim on the Leaver within six (6) months of determination of the Departed Manager Leaver Price;
- (c) reduced by an amount equal to the sum payable by a Departed Manager Leaver to the Lead Investor or an Investor Affiliate or any Group Company (as applicable) in respect of a Claim that is Finally Determined (if any);
- (d) where the Departed Manager Leaver is a Departed Manager Leaver under limb (a) of the definition of Departed Manager Leaver:
 - (i) (A) where any payments made by the Group to the Departed Manager Leaver to assist the Departed Manager Leaver in funding the subscription of the Departed Manager Leaver Equity including pursuant to a Manager Loan Agreement (as the case may be) and (B) to the extent the Departed Manager Leaver Price is in excess of Cost, that excess part may be satisfied by the issue by the Company or another Group Company of a loan note with a coupon at the rate of 3 per cent. above the base rate from time to time of the Company’s principle bankers of the Departed Manager Leaver Price net of any Tax payable by that Departed Manager Leaver on the Departed Manager Leaver Equity; or
 - (ii) where no payments have been made by the Group to the Departed Manager Leaver to assist the Departed Manager Leaver in funding the subscription of the Departed Manager Leaver Equity, satisfied by the issue by the Company or another Group Company of a loan note with a coupon at the rate of 3 per cent. above the base rate from time to time of the Company’s principle bankers of the Departed Manager Leaver Price net of any Tax payable by that Departed Manager Leaver on the Departed Manager Leaver Equity; or

- (iii) where the Leaver is a Departed Manager Leaver under limbs (b) and/or (c) and/or (d) of the definition of Departed Manager Leaver, satisfied by the issue by the Company or another Group Company of a zero coupon loan note which shall be repayable upon an Exit.

13.11.3 In the event that a Departed Manager Leaver has Transferred Departed Manager Leaver Equity at Market Value to a person (the “**Relevant Transferee**”) pursuant to this Article 13 (due to such Departed Manager Leaver being a Departed Manager Leaver under limb (a) of the definition of Departed Manager Leaver) and such Departed Manager Leaver subsequently becomes a Departed Manager Leaver under limbs (b) and/or (c) of the definition of Departed Manager Leaver, such Departed Manager Leaver shall, on demand, pay to the Relevant Transferee of such Departed Manager Leaver Equity an amount equal to the difference between: (1) the Departed Manager Leaver Price paid by the Relevant Transferee for such Departed Manager Leaver Equity; and (2) £1.00.

13.12 **Waiver of Rights and Exercise of Votes Post Departed Manager Cessation Date**

13.12.1 Immediately upon a Departed Manager becoming a Departed Manager Leaver, unless otherwise determined by Investor Consent or Investor Direction:

- (a) the Departed Manager Leaver shall be deemed to have waived and released (and for the avoidance of doubt, the Departed Manager Leaver hereby undertakes irrevocably not to exercise) all the voting and other rights (including any right to participate in pre-emptive or other offerings of Securities but excluding his rights pursuant to Article 8 (*Return of Capital*)) attached to any Departed Manager Leaver Equity held by him or which he and/or his related holders may benefit from in connection with their holding of Securities;
- (b) the votes of the Departed Manager Leaver attaching to the Departed Manager Leaver Equity shall not be counted in determining the total number of votes which may be cast at any such meeting of the Shareholders, or required for the purposes of a written resolution of any Shareholders or any class of Shareholders, or for the purposes of any other consent required under the Transaction Documents; and
- (c) to the extent applicable, the Departed Manager Leaver shall immediately resign from any board, officer or committee position(s) of any Group Company.

13.12.2 Any and all rights attached to the Departed Manager Leaver Equity shall be deemed to transfer to the relevant Transferee(s) upon the payment of the Departed Manager Leaver Price in accordance with this Article and all rights in the Departed Manager Leaver Equity shall be reinstated in favour of such Transferee.

13.12.3 Notwithstanding any other provision of these Articles, unless otherwise determined by Investor Consent, if any Securities are retained by a Departed Manager Leaver at any time following completion of the transfer pursuant to the Departed Manager Leaver Notice:

- (a) such Securities will be deemed to vote in the same way as the Lead Investor or their Investor Transferees on any resolutions and will remain subject to the terms of these Articles and the Investment Agreement, including, without limitation, the restrictions on Transfer set out in these Articles and the Investment Agreement; and

- (b) the Departed Manager Leaver shall take such actions as directed by the Lead Investor in respect of such Securities, provided that such actions would not result in the relevant Departed Manager Leaver being disproportionately adversely impacted by such action as compared to all other holders of the same class of Securities.

13.13 **Determination of Market Value by Independent Accountant**

13.13.1 For the purposes of determining the Market Value, the Independent Accountant shall act on the following basis:

- (a) they shall act as an expert and not as an arbitrator;
- (b) their terms of reference shall be to make the relevant determination within 30 days of acceptance of their appointment;
- (c) they shall determine the procedure to be followed in the determination having regard to the provisions of the Articles; and
- (d) their determination shall (in the absence of fraud or manifest error) be final and binding on the Company and the parties for whom the determination is being made.

13.13.2 The Company and the parties for whom the determination is being made will sign an engagement letter with the Independent Accountant in a form agreed between the Independent Accountant and such parties (such agreement not to be unreasonably withheld or delayed). The parties acknowledge that the engagement letter will include a waiver of claims against the Independent Accountant and similar hold harmless provisions arising out of the Independent Accountant's performance of its role.

13.13.3 The costs of the determination, including fees and expenses of the Independent Accountant, shall be borne:

- (a) by the relevant Leaver or Departed Manager Leaver (as the case may be), if the Market Value which is determined by the Independent Accountant is equal to or less than the highest price suggested by the Remuneration Committee (with Investor Consent); and
- (b) otherwise, by the Company.

14 **Drag along**

14.1 **Circumstances in which Drag-Along Rights apply**

If the Lead Investor or its Investor Affiliates (together, the "**Drag Triggering Sellers**") propose to make a Transfer of any Ordinary Shares to a third party (which shall not include an Investor Affiliate) (the "**Drag Transferee**") which would, on its completion, result in a Sale (a "**Drag-Along Sale**"), the Drag Triggering Sellers shall have the right to require all other Security Holders (the "**Dragged Security Holders**") to transfer to the Drag Transferee such proportion of their respective Securities held by a Security Holder as the number of respective Securities the Drag Triggering Sellers propose to sell in the Drag-Along Sale bear to the total number of Securities held by the Drag Triggering Sellers in the Company (the "**Drag-Along Securities**") in accordance with the following provisions of this Article 14.

14.2 **Drag-Along Mechanism**

14.2.1 Not less than 20 Business Days prior to the proposed completion date of such Drag-Along Sale, the Drag Triggering Sellers may give written notice of the proposed

Drag-Along Sale to the Company and the Dragged Security Holders (the “**Drag-Along Notice**”) which notice shall set out (to the extent not described in any accompanying documentation):

- (a) that the Dragged Security Holders are required to Transfer all their Drag-Along Securities in the event of a Drag-Along Sale;
- (b) the identity of the Drag Transferee;
- (c) subject to Article 14.2.2 below, the type and amount of consideration to be paid by the Drag Transferee for the Drag-Along Securities;
- (d) the proposed date of the Transfer (if known); and
- (e) all other material terms and conditions, if any, of the Drag-Along Sale.

14.2.2 Upon receipt of the Drag-Along Notice, the Dragged Security Holders shall be required to Transfer their respective Drag-Along Securities to the Drag Transferee as part of the Drag-Along Sale:

- (a) at the same time as the Transfer by the Drag Triggering Sellers;
- (b) subject to Articles 14.2.4 and 14.2.7 below, for the same type and amount of consideration as for the corresponding Securities being sold by the Drag Triggering Sellers;
- (c) on substantially the same economic terms (including participating in any contingent or deferred consideration, insurance, premium, escrow arrangements on the same terms) as are agreed between the Drag Triggering Sellers and the Drag Transferee,

(subject always to Article 8 (*Return of Capital*)) provided that, the Lead Investor may, in its absolute discretion by Investor Direction, determine that a Dragged Security Holder shall be offered a cash equivalent to any non-cash consideration being paid for the Drag Triggering Sellers’ Securities.

14.2.3 For the purposes of Article 14.2.2 above, the Ordinary Shares shall be deemed to constitute a single class of Security and the MCP Shareholder Loans shall be deemed to constitute a single class of Security.

14.2.4 The validity of a Drag-Along Sale pursuant to the provisions of this 14 shall not be affected by the Drag Transferee offering different forms of consideration to the Drag Triggering Sellers and/or the Dragged Security Holders provided that:

- (a) on the date of the Transfer, the value of the consideration offered per Dragged Security which has been calculated in accordance with Article 14.2.2(b); and
- (b) to the extent that the Drag Triggering Sellers are receiving cash as consideration for their Securities, each Dragged Security Holder shall also be entitled to receive cash consideration on equivalent terms to the Drag Triggering Sellers, in respect of the same class of Securities and in the same proportions; and
- (c) the economic rights and ranking attaching to any securities issued as consideration to the Dragged Security Holders will be the same (or not worse) economic rights and ranking as any securities issued as consideration to the Drag Triggering Sellers (unless the Drag Security Holders instead receive a cash equivalent in lieu of receiving securities).

For these purposes “economic rights and ranking” means the right to receive (and the ranking in relation to) a repayment of principal, a return of capital, a distribution, a payment of interest or a payment of proceeds of sale.

- 14.2.5 The Drag-Along Notice shall be accompanied by copies of documents required to be executed by the Dragged Security Holders to give effect to the Drag-Along Sale (the “**Drag-Along Sale Documents**”).
- 14.2.6 Each Dragged Security Holder, upon receipt of the Drag-Along Notice and accompanying documents, shall be obliged to:
- (a) sell all of their Drag-Along Securities and participate in the Drag-Along Sale (including giving warranties to the Drag Transferee as to the title to, and ownership of, their Drag-Along Securities and their authority and capacity to transfer the Drag-Along Securities on the same basis as the Drag Triggering Sellers and (if applicable) customary leakage protections on the same (or not worse) terms as those given by on the same basis as the Drag Triggering Sellers), in each case, on the terms set out in the Drag-Along Notice and supporting documents;
 - (b) not less than two (2) Business Days prior to the anticipated completion date of the Drag-Along Sale, return to the Drag Triggering Sellers the duly executed Drag-Along Sale Documents and, if a certificate has been issued in respect of the relevant Securities, the relevant certificate(s) (or an indemnity in respect of any missing certificates in a form reasonably satisfactory to the Board) all of which shall be held against payment of the aggregate consideration due to him;
 - (c) unless agreed otherwise with Investor Consent, bear proportionate liability for any representations, warranties or indemnities given by the Lead Investor about the Group in relation to the Drag-Along Sale, in respect of which the Lead Investor is actually liable and which relate only to the business of the Group, in the same proportions as the consideration (of whatever form) received by him bears to the aggregate consideration paid pursuant to the Drag-Along Sale;
 - (d) unless agreed otherwise with Investor Consent, bear an amount of any costs and expenses of the Drag-Along Sale (to the extent such costs are not paid by a Group Company) and participate in any escrow or deferred consideration on the same (or not worse) terms as the Lead Investor and in each case in the same proportions as the consideration (of whatever form) received by him bears to the aggregate consideration paid pursuant to the Drag-Along Sale;
 - (e) vote their Securities in favour of the Drag-Along Sale at any meeting of Security Holders (or any class thereof) called to vote on or approve the Drag-Along Sale and/or consent in writing to and waive any applicable rights which they have in order to implement the Drag-Along Sale; and
 - (f) procure (in as far as they are reasonably able) that any directors of Group Companies designated by it vote in favour of the Drag-Along Sale.
- 14.2.7 Nothing in this Article 14 shall require the Drag Transferee to offer equality of treatment to any person with respect to any opportunities to acquire securities in the Drag Transferee's ownership structure.

14.2.8 Each Dragged Security Holder shall be entitled to receive his consideration pursuant to the Drag-Along Sale (less his share of the costs of the Drag-Along Sale) at the same time as the Drag Triggering Sellers.

14.3 **Subscription or Acquisition of Securities during Drag-Along Sale Period**

Following the issue of a Drag-Along Notice, if any person is issued or otherwise acquires any new or additional Securities ("**New Holder**"), a Drag-Along Notice shall be deemed to have been served upon such New Holder on the same terms as the previous Drag-Along Notice. The New Holder will be bound to sell and transfer all such new Securities acquired by him or it to the Drag Transferee or as it may direct and the provisions of this Article 14 shall apply to the New Holder (with necessary modification) in respect of its holding of such new Securities.

14.4 **Non Completion**

If the Drag-Along Sale has not been completed by the earlier of:

14.4.1 the date which is 60 Business Days following the date of the Drag-Along Notice (or, where any anti-trust, regulatory or other third party conditions are required to be satisfied before the Drag-Along Sale can be completed, by the long stop date for the satisfaction of such conditions in the Drag-Along Sale documentation (as agreed between the Lead Investor and the Drag Transferee)); and

14.4.2 the date on which the Lead Investor send a written notice to the Dragged Security Holders that the Drag-Along Sale will not be completed,

the Drag-Along Notice shall cease to be of effect and each Dragged Security Holder shall be irrevocably released from such obligations under the Drag-Along Notice and the rights of the Lead Investor pursuant to this Article shall be reinstated.

15 **Parent Drag-Along**

15.1 **Circumstances in which Parent Drag-Along Rights apply**

If MCP Fund III and/or any of its Investor Affiliates (the "**Parent Drag Triggering Sellers**") propose to make a Transfer of any securities it holds in the Lead Investor (other than in connection with a permitted transfer pursuant to Article 11 (*Permitted Transfers*)) to one or more bona fide third parties (the "**Parent Drag Transferee**"), which would, on its completion, result in the Parent Drag Transferee being entitled to exercise a Controlling Interest in the Lead Investor (a "**Parent Drag-Along Sale**"), the Parent Drag Triggering Sellers shall have the right to require all other Security Holders (the "**Parent Dragged Security Holders**") to transfer to the Parent Drag Transferee or, if directed by MCP Fund III and/or any of its Investor Affiliates, the Lead Investor all of their respective Securities (the "**Parent Drag-Along Securities**") in accordance with the following provisions of this Article 15.

15.2 **Parent Drag-Along Mechanism**

15.2.1 The Lead Investor shall notify the Managers' Representative in writing of a Parent Drag-Along Sale on or prior to the date which is 20 Business Days following completion of the Parent Drag-Along Sale (a "**Parent Drag-Along Notice**").

15.2.2 Upon receipt of the Parent Drag Along Notice, the Parent Dragged Security Holders shall be required to Transfer their respective Parent Drag-Along Securities to the Parent Drag Transferee as part of the Parent Drag-Along Sale on substantially the same economic terms (including participating in any contingent or deferred consideration, insurance, premium, escrow arrangements on the same terms) as are agreed between the Parent Drag Triggering Sellers and the Parent Drag Transferee, (subject always to Article 8 (*Return of Capital*) and Article 15.2.3).

15.2.3 The consideration payable by the Parent Drag Transferee to each Parent Dragged Security Holder for each Parent Drag-Along Securities shall be equal to the amount to which the holder of each Parent Drag-Along Securities would have been entitled to pursuant to Article 8 (*Return of Capital*) if a distribution to Security Holders had been made in an amount equal to the Implied Exit Value.

15.2.4 The validity of a Parent Drag-Along Sale pursuant to the provisions of this Article 15 shall not be affected by the Parent Drag Transferee offering different forms of consideration to the Parent Drag Triggering Sellers and/or the Parent Dragged Security Holders but provided that:

- (a) the economic rights and ranking attaching to any securities issued as consideration to the Parent Dragged Security Holders will be the same (or not worse) economic rights and ranking as any securities issued as consideration to the Parent Drag Triggering Sellers (unless the Parent Dragged Security Holders instead receive a cash equivalent in lieu of receiving securities); and
- (b) the Parent Dragged Security Holders shall receive not less than the same proportion of their consideration in cash for selling their Parent Drag-Along Securities as is received in cash by the Parent Drag Triggering Sellers for selling its securities in the Lead Investor.

For these purposes “economic rights and ranking” means the right to receive (and the ranking in relation to) a repayment of principal, a return of capital, a distribution, a payment of interest or a payment of proceeds of sale.

15.2.5 The Parent Drag-Along Notice shall be accompanied by copies of documents required to be executed by the Parent Dragged Security Holders to give effect to the Parent Drag-Along Sale (the “**Parent Drag-Along Sale Documents**”).

15.2.6 Each Parent Dragged Security Holder, upon receipt of the Parent Drag-Along Notice and accompanying documents, shall be obliged to:

- (a) sell all of their Parent Drag-Along Securities and participate in the Parent Drag-Along Sale (including giving warranties to the Parent Drag Transferee as to the title to, and ownership of, their Parent Drag-Along Securities and their authority and capacity to transfer the Parent Drag-Along Securities on the same basis as the Parent Drag Triggering Sellers and customary leakage protections on the same (or not worse) terms as those given by on the same basis as the Parent Drag Triggering Sellers), in each case, on the terms set out in the Parent Drag-Along Notice and supporting documents;
- (b) not less than two Business Days after the Parent Drag-Along Notice, return to the Parent Drag Triggering Sellers the duly executed Parent Drag-Along Sale Documents and, if a certificate has been issued in respect of the relevant Securities, the relevant certificates(s) (or an indemnity in respect of any missing certificates in a form reasonably satisfactory to the Board) all of which shall be held against payment of the aggregate consideration due to him, her or it;
- (c) unless agreed otherwise with Investor Consent, bear proportionate liability for any representations, warranties or indemnities given by MCP Fund III about the Group in relation to the Parent Drag-Along Sale, in respect of which MCP Fund III is actually liable and which relate only to the business of the Group, in the same proportions as the consideration (of whatever

form) received by him bears to the aggregate consideration paid pursuant to the Parent Drag-Along Sale;

- (d) unless agreed otherwise with Investor Consent, bear an amount of any costs and expenses of the Parent Drag-Along Sale (to the extent such costs are not paid by a Group Company) and participate in any escrow or deferred consideration on the same (or not worse) terms as MCP Fund III and in each case in the same proportions as the consideration (of whatever form) received by him, her or it bears to the aggregate consideration paid pursuant to the Parent Drag-Along Sale;
- (e) vote their Securities in favour of the Parent Drag-Along Sale at any meeting of Security Holders (or any class thereof) called to vote on or approve the Parent Drag-Along Sale and/or consent in writing to and waive any applicable rights which they have in order to implement the Parent Drag-Along Sale; and
- (f) procure (in as far as they are reasonably able) that any directors of Group Companies designated by it vote in favour of the Parent Drag-Along Sale.

15.2.7 Nothing in this Article 15.2 shall require the Parent Drag Transferee to offer equality of treatment any person with respect to any opportunities to acquire securities in the Parent Drag Transferee's ownership structure.

15.2.8 Each Parent Dragged Security Holder shall be entitled to receive his, her or its consideration pursuant to the Parent Drag-Along Sale (less his, her or its share of the costs of the Parent Drag-Along Sale) within 10 Business Days after receipt by the Parent Drag Triggering Sellers of duly executed documents pursuant to Article 15.2.6(a).

15.3 **Subscription or Acquisition of Securities During Drag-Along Sale Period**

Following the issue of a Parent Drag-Along Notice, if any person is issued or otherwise acquires any new or additional Securities (a "**New Holder**"), a Parent Drag-Along Notice shall be deemed to have been served upon such New Holder on the same terms as the previous Parent Drag-Along Notice. The New Holder will be bound to sell and transfer all such new Securities acquired by him or it to the Parent Drag Transferee or as it may direct and the provisions of this Article 15 shall apply to the New Holder (with necessary modification) in respect of its holding of such new Securities.

16 **Tag along rights**

16.1 **Circumstances in which Tag-Along Rights Apply**

16.1.1 Save as otherwise agreed in writing between the Lead Investor and a Security Holder (including in such Security Holder's Deed of Adherence), if the Lead Investor and/or its Investor Affiliates (together, the "**Tag Triggering Sellers**") propose to make a Transfer of any Ordinary Shares (or other voting Securities which forms part of the Company's equity share capital as defined in the Act) to a third party (the "**Tag Transferee**"), other than:

- (a) in connection with a Transfer pursuant to Article 11.3 (Permitted Transfers) (other than Article 11.3.1(e));
- (b) in connection with a Reorganisation Transaction;
- (c) in connection with a Parent Tag-Along Sale in accordance with Article 17 (Parent Tag-Along);

- (d) to any person where a Drag-Along Notice has been served (and has not lapsed) in accordance with the terms of Article 14; or
- (e) in connection with a Parent Drag-Along Sale in accordance with Article 15 (*Parent Drag-Along*),

which would, on its completion, result in a Sale (the “**Tag-Along Sale**”), the Tag Triggering Sellers shall procure that each of the other Security Holders have the opportunity (“**Tag-Along Right**”) to transfer to the Tag Transferee, such proportion of their respective Securities held by a Security Holder as the number of respective Securities the Tag Triggering Sellers propose to sell in the Tag-Along Sale bear to the total number of Ordinary Shares (or other voting Securities which forms part of the Company’s equity share capital as defined in the Act) held by the Tag Triggering Sellers in the Company (the “**Tag-Along Securities**”) in accordance with the following provisions of this Article 15.

- 16.1.2 The Tag-Along Right shall not apply to any Transfer of Securities following or as part of an IPO which shall be governed by the provisions of any lock up agreement and/or orderly marketing agreement.

16.2 **Tag-Along Mechanism**

- 16.2.1 Not less than 20 Business Days prior to the completion of any proposed Tag-Along Sale, the Tag Triggering Sellers shall deliver to the Company and the other Security Holders a written notice (a “**Tag-Along Notice**”) which notice shall set out (to the extent not described in any accompanying documents):

- (a) the identity of the Tag Transferee;
- (b) subject to Article 16.2.2 below, the type and amount of consideration to be paid by the Tag Transferee for the Tag-Along Securities;
- (c) the proposed date of the Transfer (if known); and
- (d) all other material terms and conditions, if any, of the Tag-Along Sale.

- 16.2.2 The Tagging Security Holders shall be entitled to Transfer their Tag-Along Securities to the Tag Transferee:

- (a) at the same time as the Transfer by the Tag Triggering Sellers;
- (b) for the same type and amount of consideration as for the corresponding Securities being sold by the Tag Triggering Sellers;
- (c) on substantially the same economic terms (including participating in any contingent or deferred consideration, insurance premium, escrow arrangements on the same terms) as are agreed between the Tag Triggering Sellers and the Tag Transferee,

(subject always to Article 8 (*Return of Capital*)) provided that the Lead Investor may, in its absolute discretion by Investor Direction, determine that a Tagging Security Holder shall be offered a cash equivalent to any non-cash consideration being paid for the Tag Triggering Seller’s Securities.

- 16.2.3 For the purposes of Article 16.2.2, the Ordinary Shares shall be deemed to constitute a single class of Security and the MCP Shareholder Loans shall be deemed to constitute a single class of Security.

- 16.2.4 If a Security Holder wishes to exercise its Tag-Along Right (any such Security Holder a “**Tagging Security Holder**”), the Tagging Security Holder shall notify the Tag

Triggering Sellers within 10 Business Days following the date of the Tag-Along Notice (the “**Acceptance Period**”) that it wishes to exercise its Tag-Along Right (each such notice a “**Notification**”). Any Security Holder that does not notify the Tag Triggering Sellers within the Acceptance Period shall be deemed to have waived its Tag-Along Right. No Notification may be withdrawn without Investor Consent.

- 16.2.5 Following the expiry of the Acceptance Period, the Tag Triggering Sellers shall deliver to each Tagging Security Holder, not less than five Business Days prior to the proposed Tag-Along Sale, a definitive agreement (along with any ancillary transfer instruments) to effect the sale of his Tag-Along Securities to the Tag Transferee.
- 16.2.6 If the Tag Transferee has informed the Tag Triggering Sellers that it wishes to purchase a fixed percentage of any class of Securities, and following any Notification(s) the Tagging Security Holders together with the Tag Triggering Sellers have indicated that they wish to sell more than this percentage as part of the relevant Tag-Along Sale, the number of Securities to be Transferred by the Tag Triggering Sellers and the Tagging Security Holders as part of the relevant Tag-Along Sale shall be reduced pro rata in order to meet this percentage requirement. For these purposes, Ordinary Shares will be deemed to be the same class of Securities so that a Tag Transferee may not elect to purchase more of one class of Ordinary Share than another class of Ordinary Share.
- 16.2.7 Each Tagging Security Holder shall:
- (a) not less than two (2) Business Days prior to the anticipated date of the proposed Transfer, return to the Tag Triggering Sellers the duly executed documents to effect the Tag-Along Sale (which shall be provided by the Tag Triggering Sellers to the Tagging Security Holders at least 5 Business Days prior to the relevant Tag-Along Sale) and, if a certificate has been issued in respect of the relevant Securities, the relevant certificate(s) (or an indemnity in respect of any missing certificates in a form reasonably satisfactory to the Board) all of which shall be held against payment of the aggregate consideration due to him. If a Tagging Security Holder fails to comply with this Article 16.2.7(a) in all material respects, such that his or her further participation would frustrate, delay or prevent completion of the relevant transaction, not less than two Business Days prior to the proposed Transfer, it shall be deemed to have waived its Tag-Along Right;
 - (b) give warranties to the Tag Transferee as to the title to, and ownership of, their Tag-Along Securities and their authority and capacity to transfer the Tag-Along Securities on the same basis as the Tag Triggering Sellers and customary leakage protections on the same (or not worse) terms as those given by the Tag Triggering Sellers;
 - (c) unless agreed otherwise with Investor Consent, bear proportionate liability for any representations, warranties or indemnities given by the Lead Investor about the Group in relation to the Tag-Along Sale, in respect of which the Lead Investor is actually liable and which relate only to the business of the Group, in the same proportions as the consideration (of whatever form) received by him bears to the aggregate consideration paid pursuant to the Tag-Along Sale;
 - (d) bear an amount of any costs of the Tag-Along Sale (to the extent such costs are not paid by a Group Company) in the same proportions as the consideration (of whatever form) received by him bears to the aggregate consideration paid pursuant to the Tag-Along Sale;

- (e) participate in any escrow arrangements agreed between the Tag Triggering Sellers and Tag Transferee in connection with the Tag-Along Sale on the same basis as the Tag Triggering Sellers; and
- (f) procure (in as far as they are reasonably able) that any directors of Group Companies designated by it vote in favour of the Tag-Along Sale.

16.2.8 The Tag Triggering Sellers shall furnish or shall procure that the Tag Transferee furnishes such evidence of completion of such Tag-Along Sale as may be reasonably requested by any Tagging Security Holder.

16.2.9 Each Tagging Security Holder shall be entitled to receive his or her consideration pursuant to the Tag-Along Sale (less his share of the costs of the Tag-Along Sale) at the same time as the Tag Triggering Sellers.

16.3 **Non Acceptance by Security Holders**

16.3.1 If some or all of the Tagging Security Holders waive, or are deemed to have waived, their Tag-Along Rights, the Tag-Along Sale is permitted to be made provided:

- (a) it is completed within 60 Business Days of the expiry of the Acceptance Period (or, where any anti-trust, regulatory or other third party conditions are required to be satisfied before the Tag-Along Sale can be completed, by the long stop date for the satisfaction of such conditions in the Tag-Along Sale documentation (as agreed between the Tag Triggering Sellers and the Tag Transferee)); and
- (b) it takes place on terms and conditions no more favourable to the Tag Triggering Sellers in any material respect to those stated on the Tag-Along Notice.

16.3.2 All Security Holders agree to vote their Securities in favour of the Tag-Along Sale at any meeting of Security Holders (or any class thereof) called to vote on or approve the Tag-Along Sale (and any ancillary or related matters) and/or consent in writing to and waive any applicable rights which they have in order to implement the Tag-Along Sale (and any ancillary or related matters provided they are on the terms of these Articles).

16.4 **Subscription or acquisition of securities during tag-along sale period**

Following the issue of a Tag-Along Notice, if any person is issued or otherwise acquires any new or additional Securities (a “**New Holder**”), a Tag-Along Notice shall be deemed to have been served upon such New Holder on the same terms as the previous Tag-Along Notice (provided such Tag-Along Notice hasn’t lapsed). The New Holder shall have the opportunity to participate in the Tag-Along Sale in accordance with the provisions this Article 16 (*Tag-Along Rights*).

16.5 **Non Completion**

If the Tag-Along Sale is not completed within the period set out in Article 16.3.1(a) above, the Tag Triggering Sellers shall promptly return to the Tagging Security Holder all documents (if any) previously delivered in respect of the Tag-Along Sale, and all the restrictions on Transfer contained in these Articles with respect to Securities held or owned by the Tag Triggering Sellers and such Tagging Security Holder shall again be in effect.

17 **Parent Tag-Along**

17.1 **Circumstances in which Parent Tag-Along Rights apply**

If MCP Fund III and/or any of its Investor Affiliates (the “**Parent Tag Triggering Sellers**”) proposes to sell and transfer all or a proportion of the securities it holds in the Lead Investor (other than in connection with a permitted transfer pursuant to Article 11 (*Permitted Transfers*)) to one or more bona fide third parties (“**Parent Tag Transferee**”), which would, on its completion, result in the Parent Tag Transferee holding more than 20% of the aggregate voting rights in the Lead Investor (the “**Parent Tag-Along Sale**”), the Parent Tag Triggering Sellers and the Lead Investor shall procure that each of the other Security Holders have the opportunity (“**Parent Tag-Along Right**”) to transfer to the Parent Tag Transferee, such proportion of the respective voting securities held by a Security Holder as to the number of respective Securities the Parent Tag Triggering Sellers propose to sell in the Parent Tag-Along Sale bear to the total number of voting securities held by the Parent Tag Triggering Sellers in the Lead Investor (the “**Parent Tag-Along Securities**”) in accordance with the following provisions of this Article 17.

17.2 **Parent Tag-Along Mechanism**

17.2.1 The Lead Investor shall notify the Managers’ Representative in writing of a Parent Tag-Along Sale on or prior to the date which is not less than 20 Business Days prior to completion of the Parent Tag-Along Sale (a “**Parent Tag-Along Notice**”) which notice shall set out (to the extent not described in any accompanying documents):

- (a) the identity of the Parent Tag Transferee;
- (b) subject to Article 17.2.2 below, the type and amount of consideration to be paid by the Parent Tag Transferee for the Parent Tag-Along Securities;
- (c) the proposed date of the Transfer (if known); and
- (d) all other material terms and conditions, if any, of the Parent Tag-Along Sale.

17.2.2 The Parent Tagging Security Holders shall be entitled to Transfer their Parent Tag-Along Securities to the Parent Tag Transferee:

- (a) at the same time as the Transfer by the Parent Tag Triggering Sellers;
- (b) for the same type and amount of consideration as for the corresponding Securities being sold by the Parent Tag Triggering Sellers;
- (c) on substantially the same economic terms (including participating in any contingent or deferred consideration, insurance premium, escrow arrangements on the same terms) as are agreed between the Parent Tag Triggering Sellers and the Parent Tag Transferee;

(subject always to Article 8 (*Return of Capital*) and Article 17.2.3 provided that MCP Fund III may, in its absolute discretion, determine that a Parent Tagging Security Holder shall be offered a cash equivalent to any non-cash consideration being paid for the Parent Tag Triggering Seller’s Securities.

17.2.3 The consideration payable by the Parent Tag Transferee to each Parent Tagging Security Holder for each Parent Tag-Along Securities shall be equal to the amount to which the holder of each Parent Tag-Along Securities would have been entitled to pursuant to Article 8 (*Return of Capital*) if a distribution to Security Holders had been made in an amount equal to the Implied Exit Value.

17.2.4 If a Security Holder wishes to exercise its Parent Tag-Along Right (any such Security Holder a “**Parent Tagging Security Holder**”), the Parent Tagging Security Holder shall notify the Parent Tag Triggering Sellers within 10 Business Days following the date of the Parent Tag-Along Notice (the “**Parent Acceptance Period**”) that it

wishes to exercise its Parent Tag-Along Right (each such notice a “**Parent Notification**”). Any Security Holder that does not notify the Parent Tag Triggering Sellers within the Parent Acceptance Period shall be deemed to have waived its Parent Tag-Along Right. No Parent Notification may be withdrawn without Investor Consent.

17.2.5 Following the expiry of the Parent Acceptance Period, the Parent Tag Triggering Sellers shall deliver to each Parent Tagging Security Holder, not less than five (5) Business Days prior to the proposed Parent Tag-Along Sale, a definitive agreement (along with any ancillary transfer instruments) to effect the sale of his Parent Tag-Along Securities to the Parent Tag Transferee.

17.2.6 Each Parent Tagging Security Holder shall:

- (a) not less than two (2) Business Days prior to the anticipated date of the proposed Transfer, return to the Parent Tag Triggering Sellers the duly executed documents to effect the Parent Tag-Along Sale (which shall be provided by the Parent Tag Triggering Sellers to the Parent Tagging Security Holders at least 5 Business Days prior to the relevant Parent Tag-Along Sale) and, if a certificate has been issued in respect of the relevant Securities, the relevant certificate(s) (or an indemnity in respect of any missing certificates in a form reasonably satisfactory to the Board) all of which shall be held against payment of the aggregate consideration due to him. If a Parent Tagging Security Holder fails to comply with this Article 17.2.6(a) in all material respects, such that his or her further participation would frustrate, delay or prevent completion of the relevant transaction, not less than two Business Days prior to the proposed Transfer, it shall be deemed to have waived its Parent Tag-Along Right;
- (b) give warranties to the Parent Tag Transferee as to the title to, and ownership of, their Parent Tag-Along Securities and their authority and capacity to transfer the Parent Tag-Along Securities and (if applicable) customary leakage protections on the same (or not worse) terms as those given by the Parent Tag Triggering Sellers;
- (c) unless agreed otherwise with Investor Consent, bear proportionate liability for any representations, warranties or indemnities given by the MCP Fund III about the Group in relation to the Parent Tag-Along Sale, in respect of which the MCP Fund III is actually liable and which relate only to the business of the Group, in the same proportions as the consideration (of whatever form) received by him bears to the aggregate consideration paid pursuant to the Parent Tag-Along Sale;
- (d) bear an amount of any costs of the Parent Tag-Along Sale (to the extent such costs are not paid by a Group Company) in the same proportions as the consideration (of whatever form) received by him, her or it bears to the aggregate consideration paid pursuant to the Parent Tag-Along Sale;
- (e) participate in any escrow arrangements agreed between the Parent Tag Triggering Sellers and Parent Tag Transferee in connection with the Parent Tag-Along Sale on the same basis as the Parent Tag Triggering Sellers; and
- (f) procure (in as far as they are reasonably able) that any directors of Group Companies designated by it vote in favour of the Parent Tag-Along Sale.

17.2.7 The Parent Tag Triggering Sellers shall furnish or shall procure that the Parent Tag Transferee furnishes such evidence of completion of such Parent Tag-Along Sale as may be reasonably requested by any Parent Tagging Security Holder.

17.2.8 Each Parent Tagging Security Holder shall be entitled to receive his consideration pursuant to the Parent Tag-Along Sale (less his share of the costs of the Parent Tag-Along Sale) at the same time as the Parent Tag Triggering Sellers.

17.3 **Non Acceptance by Security Holders**

17.3.1 If some or all of the Parent Tagging Security Holders waive, or are deemed to have waived, their Parent Tag-Along Rights, the Parent Tag-Along Sale is permitted to be made provided:

- (a) it is completed within 60 Business Days of the expiry of the Parent Acceptance Period (or, where any anti-trust, regulatory or other third party conditions are required to be satisfied before the Parent Tag-Along Sale can be completed, by the long stop date for the satisfaction of such conditions in the Parent Tag-Along Sale documentation (as agreed between the Parent Tag Triggering Sellers and the Parent Tag Transferee)); and
- (b) it takes place on terms and conditions no more favourable to the Parent Tag Triggering Sellers in any material respect to those stated on the Parent Tag-Along Notice.

17.4 All Security Holders agree to vote their Securities in favour of the Parent Tag-Along Sale at any meeting of Security Holders (or any class thereof) called to vote on or approve the Parent Tag-Along Sale (and any ancillary or related matters) and/or consent in writing to and waive any applicable rights which they have in order to implement the Parent Tag-Along Sale (and any ancillary or related matters provided they are on the terms of these Articles).

17.5 **Non Completion**

If the Parent Tag-Along Sale is not completed within the period set out in Article 17.3.1(a) above, the Parent Tag Triggering Sellers shall promptly return to the Parent Tagging Security Holder all documents (if any) previously delivered in respect of the Parent Tag-Along Sale, and all the restrictions on Transfer contained in these Articles with respect to Securities held or owned by the Parent Tagging Security Holder shall again be in effect.

17.6 **Subscription or Acquisition of Securities during Parent Tag-Along sale period**

Following the issue of a Parent Tag-Along Notice, if any person is issued or otherwise acquires any new or additional Securities (a “**New Holder**”), a Parent Tag-Along Notice shall be deemed to have been served upon such New Holder on the same terms as the previous Parent Tag-Along Notice (provided such Parent Tag-Along Notice hasn't lapsed). The New Holder shall have the opportunity to participate in the Parent Tag-Along Sale in accordance with the provisions of Article 15.1.

18 **Purchase of own shares**

18.1 Subject to the Act (but without prejudice to any other provisions of these Articles) the Company may with Investor Consent or Investor Direction purchase its own Shares in accordance with Chapter 4 of Part 18 of the Act, including (without limitation) with cash up to an amount in a financial year not exceeding the limit for the time being set out in section s.692(1ZA) of the Act.

19 Subsidiaries

19.1 The Company shall procure that:

- 19.1.1 each other Group Company shall comply with those provisions of these Articles which are expressed to apply to a Group Company; and
- 19.1.2 no Group Company shall do or permit to be done any act, matter or thing which if it were done or permitted to be done by the Company would constitute a breach by the Company of any provision of these Articles or would require any consent, approval or sanction under these Articles, unless such consent, approval or sanction has been first obtained.

20 Default Events

If at any time a Default Event has occurred and the Lead Investor by an Investor Direction so directs, from the time the Default Event occurred to the six (6) month anniversary of it being remedied to the satisfaction of the Lead Investor, acting reasonably, all Shareholders shall vote at any general meeting of the Company or in respect of any resolution to be passed by the Company in the same manner as the Lead Investor and shall grant any consent in respect of any matters to be consented to in respect of any such meetings or resolutions where the Lead Investor have so consented and shall not otherwise be entitled to vote at any such meeting in respect of any such resolution provided that the purpose of the passing of such resolutions is to remedy or address directly the particular Default Event in question.

21 Equity Power of Attorney

21.1 This Article 21 applies in relation to:

- 21.1.1 Article 13 (*Compulsory Transfers*);
- 21.1.2 Article 14 (*Drag Along*);
- 21.1.3 Article 15 (*Parent Drag-Along*);
- 21.1.4 Article 16 (*Tag Along*);
- 21.1.5 Article 17 (*Parent Tag-Along*); and
- 21.1.6 Article 20 (*Default Events*),

(together, the “**Relevant Provisions**”), whereby each Manager and each Security Holder (other than the Lead Investor or an Investor Affiliate) (the “**Relevant Parties**” and each a “**Relevant Party**”) hereby irrevocably, unconditionally and severally appoints each Investor Director (each an “**Attorney**”) to act at any time as his, her or its attorney with authority in his name and on his, her or its behalf:

- (a) to execute, deliver and sign any and all agreements, instruments, deeds or other papers and documents (and with full power to grant any power of attorney and/or delegate power and authority on the Relevant Party’s, behalf in accordance with the provisions contained in any such documents) and to do all things in the Relevant Party’s name; and
- (b) to consent to the holding of any meetings of the Company or of any classes of its shareholders at short notice, to attend and vote at any meeting of the Company or of any class of its shareholders including at any adjournment of any such meeting, to sign any written resolutions of the Company or of any class of its shareholders and to exercise all or any of such other rights, powers and privileges as attach to the relevant Securities,

in each case as the Attorney may in its absolute discretion consider necessary or desirable to facilitate anything expressly required to be executed or done by him/her pursuant to any Transfer of any Securities under any of the Relevant Provisions.

- 21.2 Each Relevant Party hereby declares that the power of attorney granted by him, her or it under this Article 21 is conclusive and binding on him, her or it and that each and every act and thing done by the applicable Attorney pursuant to this Article 21 shall be good and effectual as if the same had been done by him, her or it and each Relevant Party hereby undertakes at all times hereafter to ratify and confirm whatsoever the applicable Attorney shall lawfully do or cause to be done by virtue of the power of attorney.
- 21.3 Each Relevant Party irrevocably and unconditionally undertakes at all times to indemnify and keep indemnified the applicable Attorney against all or any actions, proceedings, claims, costs, expenses and liabilities whatsoever arising from the exercise or purported exercise in good faith of the powers conferred or purported to be conferred by the power of attorney.
- 21.4 Each Relevant Party' declares that the power of attorney granted by him/her/it under this Article 21 having been given by him/her/it to the Attorney to secure his obligations under the Relevant Provisions shall be irrevocable in accordance with section 4 of the Powers of Attorney Act 1971.
- 21.5 The power of attorney granted by each Relevant Party pursuant to this Article 21 shall expire at midnight on the date which is 30 Business Days after the termination of the Investment Agreement and shall be irrevocable until that time.

PART C

DIRECTORS' POWERS AND RESPONSIBILITIES

22 Directors' general authority

Subject to these Articles, the directors are responsible for the management of the Company's business, for which purpose they may exercise all the powers of the Company.

23 Members' reserve power

- 23.1 The members may, with Investor Consent and by special resolution, direct the directors to take, or refrain from taking, specified action.
- 23.2 No such special resolution invalidates anything which the directors have done before the passing of the resolution.

24 Directors may delegate

- 24.1 Subject to these Articles the directors may, with Investor Consent, delegate any of the powers which are conferred on them under these Articles:

- 24.1.1 to such person or committee;
 - 24.1.2 by such means (including by power of attorney);
 - 24.1.3 to such an extent;
 - 24.1.4 in relation to such matters or territories; and
 - 24.1.5 on such terms and conditions;
- as they think fit.

- 24.2 If the directors (acting with Investor Consent) so specify, any such delegation may authorise further delegation of the directors' powers by any person to whom they are delegated.
- 24.3 The directors (acting with Investor Consent) may revoke any delegation in whole or part, or alter its terms and conditions.

25 Committees

- 25.1 Committees to which the directors delegate any of their powers must follow procedures which are based as far as they are applicable on those provisions of these Articles which govern the taking of decisions by directors.
- 25.2 The directors may make rules of procedure for all or any committees, which prevail over rules derived from these Articles if they are not consistent with them.

DECISION MAKING BY DIRECTORS

26 Directors to take decisions collectively

- 26.1 Subject to Article 26.2, the general rule about decision making is that any decision of the directors must be either a majority decision at a meeting or a decision taken in accordance with Article 27.2.
- 26.2 Subject to Article 26.3, resolutions of the Board at any meetings of the Board shall be decided by the majority of the votes cast, and each director shall have one vote. In the case of an equality of votes, no person (including the Chairperson) shall have a second or casting vote and the resolution shall not be passed. The positive vote of at least one Investor Director shall be required for the approval of any decision made by Board to which an Investor Director has been appointed.
- 26.3 Where the majority of the Investor Directors appointed by the Lead Investor to the Board vote in favour of or against a matter, such decision shall be deemed to carry the majority of the votes at the relevant meeting.
- 26.4 If and for so long as the Company has only one director who is an Investor Director:
- 26.4.1 the general rule in Article 26.1 shall not apply;
 - 26.4.2 the Investor Director may take decisions without regard to any of the provisions of these Articles relating to directors' decision making; and
 - 26.4.3 for the purposes of Article 30.2, the requirement for a quorum shall be deemed to be fixed as one eligible director.
- 26.5 The provisions of Article 26.6 shall apply if the following criteria are satisfied:
- 26.5.1 the Company has two current directors, one of whom is an Investor Director; and
 - 26.5.2 the Investor Director has, in respect of any particular meeting (or part of a meeting), given their agreement pursuant to Article 9.5.1(b).
- 26.6 If the criteria in Article 26.5 are satisfied, then for the duration of the meeting in question:
- 26.6.1 the general rule in Article 26.1 shall not apply;
 - 26.6.2 the non-Investor Director may take decisions without regard to any of the provisions of these Articles relating to directors' decision making; and
 - 26.6.3 for the purposes of Article 30.2, the requirement for a quorum shall be deemed to be fixed as one eligible director.

27 Directors' decisions otherwise than at a directors' meeting

- 27.1 A decision of the directors is taken in accordance with this Article when all eligible directors indicate to each other by any means that they share a common view on a matter.
- 27.2 Such a decision may take the form of a resolution in writing where each eligible director has signed one or more copies of it, or to which each eligible director has otherwise indicated agreement in writing.
- 27.3 A decision may not be taken in accordance with this Article if the eligible directors would not have formed a quorum at such a meeting.

28 Frequency and convening of meetings of directors

- 28.1 Unless the Lead Investor otherwise agrees in writing, meetings of the directors shall take place not less than four times in each year with such intervals as may be appropriate. Any Investor Director, or appointee of the Lead Investor may call a meeting of the directors, or authorise the company secretary (if any) to give such notice. At least ten business days' advance notice in writing of each such meeting shall be given to each director (except with the prior consent in writing of an Investor Director, when meetings of the directors may take place on shorter notice).
- 28.2 Notice of any directors' meeting must indicate:
- 28.2.1 its proposed date and time;
 - 28.2.2 where it is to take place; and
 - 28.2.3 if it is anticipated that directors participating in the meeting will not be in the same place, how it is proposed that they should communicate with each other during the meeting.
- 28.3 Notice of a directors' meeting must be given to each director, but need not be in writing.
- 28.4 Notice of a directors' meeting need not be given to directors who waive their entitlement to notice of that meeting, by giving notice to that effect to the Company not more than 7 days after the date on which the meeting is held. Where such notice is given after the meeting has been held, that does not affect the validity of the meeting, or of any business conducted at it.

29 Participation in directors' meetings

- 29.1 Subject to these Articles, directors participate in a directors' meeting, or part of a directors' meeting, when the meeting has been called and takes place in accordance with the Articles, and they can each communicate to the others any information or opinions they have on any particular item of the business of the meeting.
- 29.2 In determining whether directors are participating in a directors' meeting, it is irrelevant where any director is or how they communicate with each other.
- 29.3 If all the directors participating in a meeting are not in the same place, they may decide that the meeting is to be treated as taking place wherever any of them is.

30 Quorum for directors' meetings

- 30.1 At a directors' meeting, unless a quorum is participating, no proposal is to be voted on, except a proposal to call another meeting.
- 30.2 Subject to the provisions of Part B of these Articles and to Articles 26.4, 26.6 and 30.4, the quorum for directors' meetings shall be two eligible directors which includes at least one Investor Director.

- 30.3 If the necessary quorum is not present within 30 minutes from the time appointed for the meeting, or if, during a meeting, such quorum ceases to be present, the meeting shall stand adjourned to such time and place as an Investor Director determines. If a quorum is not present at any such adjourned meeting within 30 minutes from the time appointed, when any Investor Director present shall constitute a quorum and the meeting shall proceed.
- 30.4 For the purposes of any meeting (or part of a meeting) held pursuant to Article 32 to authorise a director's conflict of interest, if there is only one eligible director in office other than the conflicted director(s), the quorum for the part of the meeting to authorise a director's conflict of interest only shall be one eligible director.
- 30.5 If the total number of directors for the time being is less than the quorum required, the directors must not take any decision other than a decision to appoint further directors, or to call a general meeting so as to enable the members to appoint further directors.

31 Chairing of directors' meetings

- 31.1 The directors may, with Investor Consent, appoint any person as Chairperson and may, with Investor Consent, remove and replace any such Chairperson.
- 31.2 If there is no Chairperson in office for the time being, or the Chairperson is unable to attend any meeting of the directors, the directors present at the meeting must appoint another director present at the meeting to chair the meeting and the appointment of the chairperson of the meeting must be the first business of the meeting.
- 31.3 If the number of votes for and against a proposal at a meeting of directors is equal, the Chairperson or other director chairing the meeting shall not have a casting vote.

32 Directors - powers to authorise conflicts of interest

- 32.1 The directors may subject to obtaining Investor Consent authorise, to the fullest extent permitted by law, any matter which would otherwise result in a director infringing his duty to avoid a Conflict Situation provided that, for this purpose, the director in question and any other interested Director are not counted in the quorum at any board meeting at which such matter is authorised and it is agreed to without their voting or would have been agreed to if their votes had not been counted.
- 32.2 Any authorisation given under Article 32.1 may (whether at the time of giving the authorisation or subsequently) extend to any actual or potential conflict of interest which may reasonably be expected to arise out of the conflict so authorised.
- 32.3 Where the directors give authority under Article 32.1:
- 32.3.1 they may (whether at the time of giving the authority or subsequently) require that the relevant director is excluded from the receipt of information, participation in discussion and/or the making of decisions (whether at directors' meetings or otherwise) related to the matter that is the subject of the authorisation and impose upon the relevant director such other terms for the purpose of the authorisation as they think fit and:
- (a) the relevant director will be obliged to conduct himself/herself in accordance with any terms imposed by the directors in relation to the authorisation; and
 - (b) the relevant director will not infringe any duty he owes to the Company by virtue of sections 171 to 177 of the Act provided he acts in accordance with such terms;

- 32.3.2 they may provide that where the relevant director obtains (otherwise than through his position as a director of the Company) information that is confidential to a third party, the director will not be obliged to disclose that information to the Company, or to use or apply the information in relation to the Company's affairs, where to do so would amount to a breach of that confidence; and
- 32.3.3 the directors may revoke or vary the authority at any time but this will not affect anything done by the relevant director prior to such revocation in accordance with the terms of such authority.
- 32.4 A director shall not, by reason of his office, be accountable to the Company for any benefit which he derives from any matter which has been authorised by the directors pursuant to Article 32.1 (subject in any case to any limits or conditions to which such approval was subject).
- 32.5 For the purposes of section 175 and 180(4) of the Act and for all other purposes, and notwithstanding the provisions of Articles 32.1 to 32.4, it is acknowledged that a Director may be or become subject to a Group Conflict Situation or Group Conflict Situations.
- 32.6 A Director's duties to the Company arising from his or her holding office as director shall not be breached or infringed as a result of any Group Conflict Situation having arisen or existing in relation to him/her and such Group Conflict Situation shall, for the purposes of section 180(4) of the Act, be deemed authorised.
- 32.7 Any Director the subject of a Group Conflict Situation shall:
 - 32.7.1 not be held accountable to the Company for any benefit he directly or indirectly derives from his involvement in any Group Company;
 - 32.7.2 be entitled to receive notice (including any relevant board papers) of, attend, count in the quorum towards and vote at board meetings relating in any way to, and deal generally with, matters concerning, connected with or arising from the Group Conflict Situation concerned; and
 - 32.7.3 be entitled to keep confidential and not disclose to the Company any information which comes into his possession as a result of such Group Conflict Situation where such information is confidential as regards any third party.

33 Investor director conflicts

- 33.1 For the purposes of sections 175 and 180(4) of the Act and for all other purposes, and notwithstanding the provisions of Articles 32.1 to 32.7 it is acknowledged that an Investor Director may be or become subject to a Conflict Situation or Conflict Situations as a result of his or her also being or having been or being party to an agreement or arrangement or understanding or circumstances under which he or she may become an employee, director, trustee, member, partner, officer or representative of, or a consultant to, or a direct or indirect investor in and/or otherwise commercially involved with or economically interested in any of the following:
 - 33.1.1 an Investor;
 - 33.1.2 an Investor Affiliate; or
 - 33.1.3 an interest or similar incentive arrangement associated with any Investor or Investor Affiliate.
- 33.2 An Investor Director's duties to the Company arising from his or her holding office as director shall not be breached or infringed as a result of any Conflict Situation envisaged by Article 33.1 having arisen or existing in relation to him or her and such Conflict Situation shall, for the purposes of section 180(4) of the Act, be deemed authorised.

33.3 Any Investor Director the subject of a Conflict Situation envisaged by Article 33.1 shall:

33.3.1 not be held accountable to the Company for any benefit he or she directly or indirectly derives from his or her involvement in or with any person referred to in Articles 33.1.1 to 33.1.3 (inclusive) irrespective of whether the activities of such person or entity are or may become competitive with those of any Group Company;

33.3.2 be entitled to receive notice (including any relevant board papers) of, attend, count in the quorum towards and vote at board meetings relating in any way to and deal generally with, matters concerning, connected with or arising from the Conflict Situation concerned; and

33.3.3 be entitled to keep confidential and not disclose to the Company any information which comes into his possession as a result of such Conflict Situation where such information is confidential as regards any third party.

34 Directors – transactions or other arrangements with the company

34.1 Subject to sections 177(5) and 177(6) and sections 182(5) and 182(6) of the Act and provided he/she has declared the nature and extent of his/her interest in accordance with the requirements of the Act, a director who is in any way, whether directly or indirectly, interested in an existing or proposed transaction or arrangement with the Company:

34.1.1 may be a party to, or otherwise interested in, any transaction or arrangement with the Company or in which the Company is otherwise (directly or indirectly) interested;

34.1.2 shall be an eligible director for the purposes of any proposed decision of the directors (or committee of directors) in respect of such transaction or arrangement or proposed transaction or arrangement in which he is interested;

34.1.3 shall be entitled to vote at a meeting of directors or of a committee of the directors, or participate in any unanimous decision, in respect of such transaction or arrangement or such proposed transaction or arrangement.

34.2 For the purposes of this Article 34, references to proposed decisions and decision-making processes include any directors' meeting or part of a directors' meeting.

34.3 Subject to Article 34.4, if a question arises at a meeting of directors or of a committee of directors as to the right of a director to participate in the meeting (or part of the meeting) for voting or quorum purposes, the question may, before the conclusion of the meeting, be referred to the Chairperson whose ruling in relation to any director other than the Chairperson is to be final and conclusive.

34.4 If any question as to the right to participate in the meeting (or part of the meeting) should arise in respect of the Chairperson, the question is to be decided by a decision of the directors at that meeting, for which purpose the Chairperson is not to be counted as participating in the meeting (or that part of the meeting) for voting or quorum purposes.

35 Records of decisions to be kept

The directors must ensure that the Company keeps a record, in writing, for at least 10 years from the date of the decision recorded, of every unanimous or majority decision taken by the directors.

36 Directors' discretion to make further rules

Subject to these Articles, the Directors may (with Investor Consent) make any rule which they think fit about how they take decisions and about how such rules are to be recorded or communicated to directors.

APPOINTMENT OF DIRECTORS

37 Number and appointment of directors

- 37.1 Unless otherwise determined by ordinary resolution, the number of directors is not subject to any maximum and the minimum number of directors is one.

Rights of the Lead Investor to appoint and remove directors

- 37.2 The holders of A Ordinary Shares (acting jointly) shall be entitled from time to time to make such appointments as are set out in Article 9.1.

38 Termination of director's appointment

- 38.1 A person ceases to be a director as soon as:
- 38.1.1 that person ceases to be a director by virtue of any provision of the Act or is prohibited from being a director by law;
 - 38.1.2 a bankruptcy order is made against that person;
 - 38.1.3 a composition is made with that person's creditors generally in satisfaction of that person's debts;
 - 38.1.4 a registered medical practitioner who is treating that person gives a written opinion to the company stating that that person has become physically or mentally incapable of acting as a director and may remain so for more than three months;
 - 38.1.5 by reason of that person's mental health, a court makes an order which wholly or partly prevents that person from personally exercising any powers or rights which that person would otherwise have and the board, with Investor Consent, has resolved that that person should cease to be a director;
 - 38.1.6 notification is received by the Company from the director that the director is resigning from office, and such resignation has taken effect in accordance with its terms.
 - 38.1.7 he/she is convicted of a criminal offence (other than a minor motoring offence) and a majority of the other directors resolve that he/she cease to be a director; and
 - 38.1.8 in the case of an executive director only, he/she shall cease to be employed by the Company or other Group Company (as appropriate) and does not continue as an employee of any other Group Company.

39 Directors – alternate directors

- 39.1 Any director (the “appointor”) may appoint as an alternate any other director or any other person approved by resolution of the directors to:
- 39.1.1 exercise that director's powers; and
 - 39.1.2 carry out that director's responsibilities
- in relation to the taking of decisions by the directors in the absence of the alternate's appointor.
- 39.2 Any appointment or removal of an alternate must be effected by notice in writing to the Company signed by the appointor or in any other manner approved by the directors.
- 39.3 The notice must:
- 39.3.1 identify the proposed alternate, and

- 39.3.2 in the case of a notice of appointment, contain a statement signed by the proposed alternate that the proposed alternate is willing to act as the alternate of the director giving the notice.
- 39.4 An alternate director may act as an alternate director to more than one director and has the same rights in relation to any decision of the directors as the alternate's appointor.
- 39.5 Except as the Articles specify otherwise, alternate directors:
- 39.5.1 are deemed for all purposes to be directors;
- 39.5.2 are liable for their own acts and omissions;
- 39.5.3 are subject to the same restrictions as their appointors; and
- 39.5.4 are not deemed to be agents of or for their appointors,
- and, in particular (without limitation), each alternate director shall be entitled to receive notice of all meetings of directors and of all meetings of committees of directors of which his appointor is a member.
- 39.6 A person who is an alternate director but not a director:
- 39.6.1 may be counted as participating for the purposes of determining whether a quorum is present (but only if that person's appointor is not participating);
- 39.6.2 may participate in a unanimous decision of the directors (but only if his appointor is an eligible director in relation to that decision, but does not participate); and
- 39.6.3 shall not be counted as more than one director for the purposes of Articles 39.6.1 and 39.6.2.
- 39.7 A director who is also an alternate director is entitled, in the absence of his appointor, to a separate vote on behalf of his appointor, in addition to his own vote on any decision of the directors (provided that his appointor is an eligible director in relation to that decision) but shall not count as more than one director for the purposes of determining whether a quorum is present.
- 39.8 An alternate director is not entitled to receive any remuneration from the Company for serving as an alternate director except such part of the alternate's appointor's remuneration as the appointor may direct by notice in writing to the Company.
- 39.9 An alternate director's appointment as an alternate terminates:
- 39.9.1 when the alternate's appointor revokes the appointment by notice to the Company in writing specifying when it is to terminate;
- 39.9.2 on the occurrence, in relation to the alternate, of any event which, if it occurred in relation to the alternate's appointor, would result in the termination of the appointor's appointment as a director;
- 39.9.3 on the death of the alternate's appointor; or
- 39.9.4 when the alternate's appointor's appointment as a director terminates.

40 Directors' remuneration

- 40.1 Directors may undertake any services for the Company that the directors decide.
- 40.2 Directors are entitled to such remuneration as the directors determine:

- 40.2.1 for their services to the Company as directors, and
- 40.2.2 for any other service which they undertake for the Company.
- 40.3 Subject to these Articles, a director's remuneration may:
 - 40.3.1 take any form, and
 - 40.3.2 include any arrangements in connection with the payment of a pension, allowance or gratuity, or any death, sickness or disability benefits, to or in respect of that director.
- 40.4 Unless the directors decide otherwise, directors' remuneration accrues from day to day.
- 40.5 Unless the directors decide otherwise, directors are not accountable to the Company for any remuneration which they receive as directors or other officers or employees of the Company's subsidiaries or of any other body corporate in which the Company is interested.

41 Directors' expenses

- 41.1 The Company may pay any reasonable expenses which the directors (including alternate directors and, if it has one, the secretary (but so that nothing in this Article 41.1 shall require the Company to have a secretary) properly incur in connection with their attendance at:
 - 41.1.1 meetings of directors or committees of directors;
 - 41.1.2 general meetings; or
 - 41.1.3 separate meetings of any holders of any class of Shares or of debentures of the Company,

or otherwise in connection with the exercise of their powers and the discharge of their responsibilities in relation to the Company.

42 Secretary

The directors may appoint any person who is willing to act as the secretary for such term, at such remuneration and upon such conditions as they may think fit, and from time to time remove such person and, if the directors so decide, appoint a replacement in each case by a decision of the directors. Nothing in this Article 42 shall require the Company to have a secretary.

SHARES AND DISTRIBUTIONS

43 Powers to issue different classes of share

- 43.1 Subject to the terms of these Articles, but without prejudice to the rights attached to any existing Share, the Company may issue Shares with such rights or restrictions as may be determined by ordinary resolution and with Investor Consent.
- 43.2 Subject to the terms of these Articles, the Company may issue Shares which are to be redeemed, or are liable to be redeemed at the option of the Company or the holder, and the directors may, with Investor Consent, determine the terms, conditions and manner of redemption of any such Shares.

44 Issue of Securities – pre-emption rights

- 44.1 In accordance with section 567(1) of the Act, sections 561 and 562 of the Act shall not apply to an allotment of Equity Securities made by the Company.

- 44.2 Unless otherwise authorised with Investor Consent or pursuant to an Investor Direction, if the Company proposes to allot any Securities, subject to Article 44.3, on any issue of Securities in which the Lead Investor or an Investor Affiliate of the Lead Investor participates other than an Excluded Issue (a “**New Issue**”):
- 44.2.1 each Security Holder (other than a holder of B Ordinary Shares) is entitled, but not obliged, to subscribe for its Pro-Rata Portion of Securities comprising the New Issue (the “**New Securities**”) on the same terms and in the same proportions as the Lead Investor; and
 - 44.2.2 prior to completion of such New Issue, the issuer(s) of Securities in the proposed New Issue shall notify each relevant Security Holder (other than a holder of B Ordinary Shares) in writing of:
 - (a) its entitlement to New Securities pursuant to Article 44.2.1, specifying the number and class of such Securities to which it is entitled, the price per class of Security, and the time (being not less than 10 Business Days) within which the offer, if not accepted by notice in writing (an “**Acceptance Notice**”), will be deemed to be declined; and
 - (b) the total number and class of Securities being issued as part of the New Issue.
- 44.3 The issuer(s) in the proposed New Issue are not required to provide notice to the relevant Security Holders pursuant to Article 44.2.2 if:
- 44.3.1 it is an Excluded Issue; or
 - 44.3.2 if so directed by an Investor Direction given in circumstances where there is a Default Event, in which case such issuer(s) shall issue the New Securities to such Investor as the Investor Direction shall specify (an “**Accelerated Issue**”) and, subject to Article 44.4, any rights of pre-emption for other relevant Security Holders (which, for the purposes of this Article 44.3.2, shall include a holder of B Ordinary Shares) in respect of the Accelerated Issue (the “**Affected Security Holders**”) shall be waived.
- 44.4 Following an Accelerated Issue:
- 44.4.1 each Affected Security Holder is entitled, but not obliged, to subscribe for or acquire (as specified in the relevant Investor Direction pursuant to Article 44.3.2) such number of each class of Securities comprising the Accelerated Issue (at the same price, on the same terms as the subscribing Investor in the Accelerated Issue) to the effect that, if all the Affected Security Holders agree to subscribe for or acquire all such Securities offered to them in accordance with this Article 44.4, each such Affected Security Holder’s Pro-Rata Portion of:
 - (a) Ordinary Shares would be the same as its Pro-Rata Portion of all Ordinary Shares immediately before such Accelerated Issue; and
 - (b) all Securities other than Ordinary Shares would be the same as its Pro-Rata Portion of all Securities other than Ordinary Shares immediately before such Accelerated Issue,
 subject always to Articles 44.6, 44.7 and 44.8; and
 - 44.4.2 within 20 Business Days following such Accelerated Issue, the issuer(s) in the Accelerated Issue shall notify each Affected Security Holder in writing of its entitlement pursuant to Article 44.4.1, specifying the number and class of Securities to which it is entitled to subscribe for or acquire, the price per class of Security, and

the time (being not less than 10 Business Days) within which the offer, if not accepted by notice in writing (also an “**Acceptance Notice**”) will be deemed to be declined.

- 44.5 Any Security Holder exercising its rights to subscribe for or acquire New Securities pursuant to this Article 44 (*Issue of Securities – Pre-emption Rights*) shall (unless otherwise agreed by Investor Consent):
- 44.5.1 be obliged to subscribe for and fund such subscription in accordance with the timetable set out above or as reasonably determined by the Lead Investor;
 - 44.5.2 be deemed to represent that he/she has, and will have at the time of issue, sufficient funds to pay the subscription price on issue;
 - 44.5.3 provide the Lead Investor with such evidence, and in such form, as it may reasonably require as to the Security Holder’s ability to fund the subscription;
 - 44.5.4 as a condition to any subscription (other than with Investor Consent) be required to subscribe for or acquire the same proportion of its entitlement to each class of New Securities comprising the New Issue; and
 - 44.5.5 if a Security Holder has accepted its full entitlement of New Securities in its Acceptance Notice, such Security Holder shall be entitled to give a binding indication, under its Acceptance Notice, of the maximum number of each class of New Securities that it is entitled to which it wishes to and therefore has committed to subscribe for or acquire (an “**Excess New Securities Commitment**”).
- 44.6 To the extent that any relevant Security Holder declines, or is deemed to decline, an offer for all or part of his, her or its Pro-Rata Portion of New Securities (any New Securities so declined or deemed to be declined being (the “**Remaining New Securities**”), then, subject to the next sentence, such number of Remaining New Securities equal to the number of additional New Securities committed to be acquired by such Security Holder under its Excess New Securities Commitment shall be offered to each Security Holder who has given an Excess New Securities Commitment (each such person being a “**Participating Security Holder**”) for the same price and otherwise on the same terms on which the other New Securities of the same class are being or have been issued as part of the relevant New Issue. If there are Excess New Securities Commitments for, in aggregate, a greater number than the number of Remaining New Securities available, the following procedure (the “**New Issue Procedure**”) shall be implemented: each Participating Security Holder shall be entitled to acquire its Remaining Pro-Rata Portion of the Remaining New Securities for the same price and otherwise on the same terms on which the other New Securities of the same class are being or have been issued as part of the relevant New Issue. If, once the New Issue Procedure has been implemented, there are further Remaining New Securities available for subscription or acquisition such New Issue Procedure shall be repeated until either: (i) each Participating Security Holder has been allocated the maximum number of Remaining New Securities in respect of which it gave an Excess New Securities Commitment; or (ii) all Remaining New Securities have been allocated for subscription or acquisition in accordance with this Article 44.6. Each time a New Issue Procedure is implemented the definition of “**Participating Security Holder**” for the purpose of calculating the Remaining Pro-Rata Portion shall exclude any relevant Security Holder who has, in the previous New Issue Procedure(s), not been allocated the maximum number of Remaining New Securities available to him.
- 44.7 In the event that, following the application of the New Issue Procedure(s), the relevant Security Holders have declined or have been deemed to decline offers for all or some of the Remaining New Securities proposed to be issued pursuant to the relevant New Issue (which shall include an Accelerated Issue), the board of directors of each Group Company proposing to issue such New Securities shall, other than where such declined New Securities are B Ordinary Shares and, subject to compliance with clauses 13 and 14 of the Investment Agreement (if applicable),

deal with such declined New Securities as determined by the Board (acting with Investor Consent).

- 44.8 If any Security Holder or person fails to meet its obligations to subscribe for or acquire Securities in connection with a New Issue, an Accelerated Issue or an Excluded Issue (a “**Defaulting Shareholder**”), the Company shall have the right (but shall not be required) without prejudice to any other remedy the Company may have, if the Defaulting Shareholder fails to remedy such default within a reasonable time period notified by the Company or to pay interest to the Company on the amount outstanding from the date on which the relevant funding was due up until the date of payment thereof at the rate of 4 per cent. above the base rate from time to time of the Company’s principle bankers, on the expiry of 30 days’ notice from the Company, to:

44.8.1 treat the relevant Defaulting Shareholder as a Bad Leaver or a Departed Manager Leaver (whereby amongst others, the Departed Manager Leaver Price shall be determined in accordance with Article 13.11.2) and to apply the provisions of Article 13 as applicable; and/or

44.8.2 buy or nominate someone else to buy all or some of the Securities held by the relevant Defaulting Shareholder, on such terms as are determined by the Board, with Investor Consent.

- 44.9 The Parties agree that the Company shall be entitled to amend and update the Share Capital Table at any time to take account of any New Issue (including an Accelerated Issue) or Excluded Issue, and each Shareholder hereby consents to such amendments.

45 Payment of commissions on subscription for shares

- 45.1 The Company may pay any person a commission in consideration for that person:

45.1.1 subscribing, or agreeing to subscribe, for Shares; or

45.1.2 procuring, or agreeing to procure, subscription for Shares.

- 45.2 Any such commission may be paid:

45.2.1 in cash, or in fully paid or partly paid Shares or other securities, or partly in one way and partly in the other; and

45.2.2 in respect of a conditional or an absolute subscription.

46 Share certificates

- 46.1 The Company must issue each member, free of charge, with one or more certificates in respect of the Shares which that member holds.

- 46.2 Every certificate must specify:

46.2.1 in respect of how many Shares, of what class, it is issued;

46.2.2 the nominal value of those Shares;

46.2.3 the amount (if any) paid upon them; and

46.2.4 any distinguishing numbers assigned to them.

- 46.3 No certificate may be issued in respect of Shares of more than one class.

- 46.4 If more than one person holds a Share, only one certificate may be issued in respect of it.

- 46.5 Certificates must have affixed to them the Company's common seal, or be otherwise executed in accordance with the Companies Acts.

47 Company not bound by less than absolute interests

Except as required by law, no person is to be recognised by the Company as holding any Share upon any trust, and except as otherwise required by law or these Articles, the Company is not in any way to be bound by or recognise any interest in a Share other than the holder's absolute ownership of it and all the rights attaching to it.

48 Fractional entitlements

- 48.1 Where there has been a consolidation or division of Shares and, as a result, members are entitled to fractions of Shares, the Board shall, with the consent of the Lead Investor, deal with the any fractional entitlements in such manner as it sees fit and may, in respect thereof:

- 48.1.1 sell the Shares representing the fractions to any person including the Company for the best price reasonably obtainable;
- 48.1.2 authorise any person to execute an instrument of transfer of the Shares to the person(s) nominated by the Board; and
- 48.1.3 distribute the net proceeds of sale in due proportion among the holders of the Shares.

- 48.2 Where any holder's entitlement to a portion of the proceeds of sale under Article 48.1 amounts to less than a minimum figure determined by the directors, that member's portion may be retained for the benefit of the Company.

- 48.3 The person to whom the Shares are transferred pursuant to Article 48.1 is not obliged to ensure that any purchase money is received by the person entitled to the relevant fractions. The transferee's title to the Shares is not affected by any irregularity in or invalidity of the process leading to their sale.

49 Company's lien over shares

49.1 Partly paid Shares

- 49.1.1 The Company may, with Investor Consent, issue Shares for less than the aggregate of its nominal value and any premium to be paid to the Company in consideration for its issue.

49.2 Lien

- 49.2.1 The Company has a lien (the "**Company's Lien**") over every Share which is left unpaid (in whole or in part) in accordance with the terms of article 49.1.1, whether he is the sole registered holder of the Share or one of several joint holders, for the outstanding amount payable by him in respect of that Share (either alone or jointly with any other person) to the Company, whether payable immediately or at some time in the future.

- 49.2.2 The Company's Lien over a Share:

- (a) takes priority over any third party's interest in that Share; and
- (b) extends to any dividend or other money payable by the Company in respect of that Share and (if the lien is enforced and the Share is sold by the Company) the proceeds of sale of that Share.

- 49.2.3 The directors may at any time decide that a Share which is or would otherwise be subject to the Company's Lien shall not be subject to it, either wholly or in part.

50 Enforcement of the Company's Lien

- 50.1.1 Subject to the provisions of this Article 50, if:

- (a) a Lien Enforcement Notice has been given in respect of a Share; and
 - (b) the person to whom the notice was given has failed to comply with it,
- the Company may sell that Share in such manner as the directors decide.

- 50.1.2 A lien enforcement notice (the "**Lien Enforcement Notice**"):

- (a) may only be given in respect of a Share which is subject to the Company's Lien, in respect of which a sum is payable and the due date for payment of that sum has passed;
- (b) must specify the Share concerned;
- (c) must require payment of the sum within 14 clear days of the notice (that is, excluding the date on which the notice is given and the date on which that 14 day period expires);
- (d) must be addressed either to the holder of the Share or to a transmittee of that holder; and
- (e) must state the Company's intention to sell the Share if the notice is not complied with.

- 50.1.3 Where Shares are sold under this Article 50:

- (a) the directors may authorise any person to execute an instrument of transfer of the Shares to the purchaser or to a person nominated by the purchaser; and
- (b) the transferee is not bound to see to the application of the consideration, and the transferee's title is not affected by any irregularity in or invalidity of the process leading to the sale.

- 50.1.4 The net proceeds of any such sale (after payment of the costs of sale and any other costs of enforcing the lien) must be applied:

- (a) first, in payment of so much of the sum for which the lien exceeds as was payable at the date of the Lien Enforcement Notice; and
- (b) second, to the person entitled to the Shares at the date of the sale, but only after the certificate for the Shares sold has been surrendered to the Company for cancellation, or an indemnity in a form reasonably satisfactory to the directors has been given for any lost certificates, and subject to a lien equivalent to the Company's Lien over the Shares before the sale for any money payable by that person (or his estate or any joint holder of the Shares) after the date of the Lien Enforcement Notice.

- 50.1.5 A statutory declaration by a director that the declarant is a director and that a Share has been sold to satisfy the Company's Lien on a specified date:

- (a) is conclusive evidence of the facts stated in it as against all persons claiming to be entitled to the Share; and

- (b) subject to compliance with any other formalities of transfer required by the Articles or by law, constitutes a good title to the Share.

50.2 **Call notices**

50.2.1 Subject to the Articles and the terms on which Shares are allotted, the directors may send a notice (a “**Call Notice**”) to a member requiring the member to pay the Company a specified sum of money (a “**Call**”) which is payable to the Company on the terms on which that Share has been allotted at the date when the directors decide to send the Call Notice.

50.2.2 A Call Notice:

- (a) may not require a member to pay a Call which exceeds the total amount of his indebtedness or liability to the Company on the terms on which that Share has been allotted;
- (b) must state when and how any Call to which it relates is to be paid; and
- (c) may permit or require the Call to be made in instalments.

50.2.3 A member must comply with the requirements of a Call Notice, but no member is obliged to pay any Call before 14 clear days (that is, excluding the date on which the notice is given and the date on which that 14 day period expires) have passed since the notice was sent.

50.2.4 Before the Company has received any Call due under a Call Notice the directors may:

- (a) revoke it wholly or in part; or
- (b) specify a later time for payment than is specified in the notice,

by a further notice in writing to the member in respect of whose Shares the Call is made.

50.3 **Liability to pay Calls**

50.3.1 Liability to pay a Call is not extinguished or transferred by transferring the Shares in respect of which it is required to be paid.

50.3.2 Joint holders of a Share are jointly and severally liable to pay all Calls in respect of that Share.

50.3.3 Subject to the terms on which Shares are allotted, the directors may, when issuing Shares, provide that Call Notices sent to the holders of those Shares may require them:

- (a) to pay Calls which are not the same; or
- (b) to pay Calls at different times.

50.4 **When Call Notice need not be issued**

50.4.1 A Call Notice need not be issued in respect of sums which are specified, in the terms on which a Share is issued, as being payable to the Company in respect of that Share:

- (a) on allotment,
- (b) on the occurrence of a particular event; or

(c) on a date fixed by or in accordance with the terms of issue.

50.4.2 But if the due date for payment of such a sum has passed and it has not been paid, the holder of the Share concerned is treated in all respects as having failed to comply with a Call Notice in respect of that sum, and is liable to the same consequences as regards the payment of interest and forfeiture.

50.5 **Failure to comply with Call Notice: automatic consequences**

50.5.1 If a person is liable to pay a Call and fails to do so by the Call payment date:

- (a) the directors may issue a notice of intended forfeiture to that person; and
- (b) until the Call is paid, that person must pay the Company interest on the Call from the Call payment date at the relevant rate.

50.5.2 For the purposes of this Article 50.5:

- (a) the “**Call payment date**” is the time when the Call Notice states that a Call is payable, unless the directors give a notice specifying a later date, in which case the “**Call payment date**” is that later date; and
- (b) the “**relevant rate**” is:
 - (i) the rate fixed by the terms on which the Share in respect of which the call is due was allotted;
 - (ii) such other rate as was fixed in the call notice which required payment of the call, or has otherwise been determined by the directors; or
 - (iii) if no rate is fixed in either of these ways, 5 per cent per annum.

50.5.3 The relevant rate must not exceed by more than 5 percentage points the base lending rate most recently set by the Monetary Policy Committee of the Bank of England in connection with its responsibilities under Part 2 of the Bank of England Act 1998.

50.5.4 The directors may waive any obligation to pay interest on a Call wholly or in part.

50.6 **Notice of intended forfeiture**

50.6.1 A notice of intended forfeiture:

- (a) may be sent in respect of any Share in respect of which a Call has not been paid as required by a Call Notice;
- (b) must be sent to the holder of that Share (or all the joint holders of that Share) or to a transmittee of that holder;
- (c) must require payment of the Call and any accrued interest and all expenses that may have been incurred by the Company by reason of such non-payment by a date which is not less than 14 clear days after the date of the notice (that is, excluding the date on which the notice is given and the date on which that 14 day period expires);
- (d) must state how the payment is to be made; and
- (e) must state that if the notice is not complied with, the Shares in respect of which the Call is payable will be liable to be forfeited.

50.7 **Directors' power to forfeit Shares**

50.7.1 If a notice of intended forfeiture is not complied with before the date by which payment of the Call is required in the notice of intended forfeiture, the directors may decide that any Share in respect of which it was given is forfeited, and the forfeiture is to include all dividends or other moneys payable in respect of the forfeited Shares and not paid before the forfeiture.

50.8 **Effect of forfeiture**

50.8.1 Subject to the Articles, the forfeiture of a Share extinguishes:

- (a) all interests in that Share, and all claims and demands against the Company in respect of it; and
- (b) all other rights and liabilities incidental to the Share as between the person whose Share it was prior to the forfeiture and the Company.

50.8.2 Any Share which is forfeited in accordance with the Articles:

- (a) is deemed to have been forfeited when the directors decide that it is forfeited;
- (b) is deemed to be the property of the Company; and
- (c) may be sold, re-allotted or otherwise disposed of as the directors think fit.

50.8.3 If a person's Shares have been forfeited:

- (a) the Company must send that person notice that forfeiture has occurred and record it in the register of members;
- (b) that person ceases to be a member in respect of those Shares;
- (c) that person must surrender the certificate for the Shares forfeited to the Company for cancellation;
- (d) that person remains liable to the Company for all sums payable by that person under the Articles at the date of forfeiture in respect of those Shares, including any interest (whether accrued before or after the date of forfeiture); and
- (e) the directors may waive payment of such sums wholly or in part or enforce payment without any allowance for the value of the Shares at the time of forfeiture or for any consideration received on their disposal.

50.8.4 At any time before the Company disposes of a forfeited Share, the directors may with Investor Consent or Investor Direction decide to cancel the forfeiture on payment of all Calls, interest and expenses due in respect of it and on such other terms as they think fit.

50.9 **Procedure following forfeiture**

50.9.1 If a forfeited Share is to be disposed of by being transferred, the Company may receive the consideration for the transfer and the directors may authorise any person to execute the instrument of transfer.

50.9.2 A statutory declaration by a director that the declarant is a director and that a Share has been forfeited on a specified date:

- (a) is conclusive evidence of the facts stated in it as against all persons claiming to be entitled to the Share; and
- (b) subject to compliance with any other formalities of transfer required by the Articles or by law, constitutes a good title to the Share.

50.9.3 A person to whom a forfeited Share is transferred is not bound to see to the application of the consideration (if any) nor is that person's title to the Share affected by any irregularity in or invalidity of the process leading to the forfeiture or transfer of the Share.

50.9.4 If the Company sells a forfeited Share, the person who held it prior to its forfeiture is entitled to receive from the Company the proceeds of such sale, net of any commission, and excluding any amount which:

- (a) was, or would have become, payable; and
- (b) had not, when that Share was forfeited, been paid by that person in respect of that Share,

but no interest is payable to such a person in respect of such proceeds and the Company is not required to account for any money earned on them.

50.10 **Surrender of Shares**

50.10.1 A member may surrender any Share:

- (a) in respect of which the directors may issue a notice of intended forfeiture;
- (b) which the directors may forfeit; or
- (c) which has been forfeited.

50.10.2 The directors may accept the surrender of any such Share.

50.10.3 The effect of surrender on a Share is the same as the effect of forfeiture on that Share.

50.10.4 A Share which has been surrendered may be dealt with in the same way as a Share which has been forfeited.

51 **Replacement share certificates**

51.1 If a certificate issued in respect of a member's Shares is:

- 51.1.1 damaged or defaced, or
- 51.1.2 said to be lost, stolen or destroyed,

that member is entitled to be issued with a replacement certificate in respect of the same Shares.

51.2 A member exercising the right to be issued with such a replacement certificate:

- 51.2.1 may at the same time exercise the right to be issued with a single certificate or separate certificates;
- 51.2.2 must return the certificate which is to be replaced to the Company if it is damaged or defaced; and

51.2.3 must comply with such conditions as to evidence, indemnity and the payment of a reasonable fee as the directors decide.

52 Share transfers

- 52.1 Subject to the provisions of Part B of these Articles, Shares may be transferred by means of an instrument of transfer in any usual form or any other form approved by the directors, which is executed by or on behalf of the transferor and, if the Shares are not fully paid, the transferee.
- 52.2 No fee may be charged for registering any instrument of transfer or other document relating to or affecting the title to any Share.
- 52.3 The Company may retain any instrument of transfer which is registered.
- 52.4 The transferor remains the holder of a Share until the transferee's name is entered in the register of members as holder of it.

53 Transmission of shares

- 53.1 If title to a Share passes to a transmittee, the Company may only recognise the transmittee as having any title to that Share.
- 53.2 Subject to Part B of these Articles and pending any transfer of the Shares to another person, a transmittee who produces such evidence of entitlement to Shares as the directors may properly require has the same rights as the holder had, but transmittees do not have the right to attend or vote at a general meeting, or agree to a proposed written resolution, in respect of Shares to which they are entitled, by reason of the holder's death or bankruptcy or otherwise, unless they become the holders of those Shares.

54 Transmittees bound by prior notices

If a notice is given to a member in respect of Shares and a transmittee is entitled to those Shares, the transmittee is bound by the notice if it was given to the member before the transmittee's name has been entered in the register of members.

DIVIDENDS AND OTHER DISTRIBUTIONS

55 Procedure for declaring dividends

- 55.1 Subject to Part B of these Articles (including, without limitation, Article 7 (*Distributions*)), the Company may by ordinary resolution declare dividends, and the directors may decide to pay interim dividends.
- 55.2 A dividend must not be declared unless the directors have made a recommendation as to its amount. Such a dividend must not exceed the amount recommended by the directors.
- 55.3 No dividend may be declared or paid unless it is in accordance with members' respective rights.
- 55.4 Unless the members' resolution to declare or directors' decision to pay a dividend, or the terms on which Shares are issued, specify otherwise, it must be paid by reference to each member's holding of Shares on the date of the resolution or decision to declare or pay it.
- 55.5 If the Company's share capital is divided into different classes, no interim dividend may be paid on Shares carrying deferred or non-preferred rights if, at the time of payment, any preferential dividend is in arrear.
- 55.6 The directors may pay at intervals any dividend payable at a fixed rate if it appears to them that the profits available for distribution justify the payment.

- 55.7 If the directors act in good faith, they do not incur any liability to the holders of Shares conferring preferred rights for any loss they may suffer by the lawful payment of an interim dividend on Shares with deferred or non-preferred rights.

56 Calculation of dividends

- 56.1 Except as otherwise provided by these Articles or the rights attached to Shares, all dividends must be declared and paid according to the amounts paid up on the Shares on which the dividend is paid and apportioned and paid proportionately to the amounts paid up on the Shares during any portion or portions of the period in respect of which the dividend is paid.
- 56.2 If any Share is issued on terms providing that it ranks for dividend as from a particular date, that Share ranks for dividend accordingly.
- 56.3 For the purposes of calculating dividends, no account is to be taken of any amount which has been paid up on a Share in advance of the due date for payment of that amount.

57 Payment of dividends and other distributions

- 57.1 Where a dividend or other sum which is a distribution is payable in respect of a Share, it must be paid by one or more of the following means:
- 57.1.1 transfer to a bank or building society account specified by the distribution recipient either in writing or as the directors may otherwise decide;
 - 57.1.2 sending a cheque made payable to the distribution recipient by post to the distribution recipient at the distribution recipient's registered address (if the distribution recipient is a holder of the Share), or (in any other case) to an address specified by the distribution recipient either in writing or as the directors may otherwise decide;
 - 57.1.3 sending a cheque made payable to such person by post to such person at such address as the distribution recipient has specified either in writing or as the directors may otherwise decide; or
 - 57.1.4 any other means of payment as the directors agree with the distribution recipient either in writing or by such other means as the directors decide.
- 57.2 In these Articles, a "**distribution recipient**" means, in respect of a Share in respect of which a dividend or other sum is payable:
- 57.2.1 the holder of the Share; or
 - 57.2.2 if the Share has two or more joint holders, whichever of them is named first in the register of members; or
 - 57.2.3 if the holder is no longer entitled to the Share by reason of death or bankruptcy, or otherwise by operation of law, the transmittee.

58 Deductions from distributions in respect of sums owed to the company

- 58.1 If:
- 58.1.1 a Share is subject to the Company's Lien; and
 - 58.1.2 the directors are entitled to issue a Lien Enforcement Notice in respect of it,
- they may, instead of issuing a Lien Enforcement Notice, deduct from any dividend or other sum payable in respect of the Share any sum of money which is payable to the Company in

respect of that Share to the extent that they are entitled to require payment under a Lien Enforcement Notice.

58.2 Money so deducted must be used to pay any of the sums payable in respect of that Share.

58.3 The Company must notify the distribution recipient in writing of:

58.3.1 the fact and amount of any such deduction;

58.3.2 any non-payment of a dividend or other sum payable in respect of a Share resulting from any such deduction; and

58.3.3 how the money deducted has been applied.

59 No interest on distributions

59.1 The Company may not pay interest on any dividend or other sum payable in respect of a Share unless otherwise provided by:

59.1.1 the terms on which the Share was issued, or

59.1.2 the provisions of another agreement between the holder of that Share and the Company.

60 Unclaimed distributions

60.1 All dividends or other sums which are:

60.1.1 payable in respect of Shares, and

60.1.2 unclaimed after having been declared or become payable,

may be invested or otherwise made use of by the directors for the benefit of the Company until claimed.

60.2 The payment of any such dividend or other sum into a separate account does not make the Company a trustee in respect of it.

60.3 If:

60.3.1 twelve years have passed from the date on which a dividend or other sum became due for payment, and

60.3.2 the distribution recipient has not claimed it,

the distribution recipient is no longer entitled to that dividend or other sum and it ceases to remain owing by the Company.

61 Non-cash distributions

61.1 Subject to the terms of issue of the Share in question, the Company may, by ordinary resolution on the recommendation of the directors, decide to pay all or part of a dividend or other distribution payable in respect of a Share by transferring non-cash assets of equivalent value (including, without limitation, shares or other securities in any company).

61.2 For the purposes of paying a non-cash distribution, the directors may make whatever arrangements they think fit, including, where any difficulty arises regarding the distribution:

61.2.1 fixing the value of any assets;

61.2.2 paying cash to any distribution recipient on the basis of that value in order to adjust the rights of recipients; and

61.2.3 vesting any assets in trustees.

62 Waiver of distributions

62.1 Distribution recipients may waive their entitlement to a dividend or other distribution payable in respect of a Share by giving the Company notice in writing to that effect, but if:

62.1.1 the Share has more than one holder, or

62.1.2 more than one person is entitled to the Share, whether by reason of the death or bankruptcy of one or more joint holders, or otherwise,

the notice is not effective unless it is expressed to be given, and signed, by all the holders or persons otherwise entitled to the Share.

CAPITALISATION OF PROFITS

63 Authority to capitalise and appropriation of capitalised sums

63.1 Subject to these Articles, the directors may, if they are so authorised by an ordinary resolution:

63.1.1 decide to capitalise any profits of the Company (whether or not they are available for distribution) which are not required for paying a preferential dividend, or any sum standing to the credit of the Company's share premium account or capital redemption reserve; and

63.1.2 appropriate any sum which they so decide to capitalise (a "**capitalised sum**") to the persons who would have been entitled to it if it were distributed by way of dividend (the "**persons entitled**") and in the same proportions.

63.2 Capitalised sums must be applied:

63.2.1 on behalf of the persons entitled, and

63.2.2 in the same proportions as a dividend would have been distributed to them.

63.3 Any capitalised sum may be applied in paying up new Shares of a nominal amount equal to the capitalised sum which are then allotted credited as fully paid to the persons entitled or as they may direct.

63.4 A capitalised sum which was appropriated from profits available for distribution may be applied in paying up new debentures of the Company which are then allotted credited as fully paid to the persons entitled or as they may direct.

63.5 Subject to these Articles the directors may:

63.5.1 apply capitalised sums in accordance with Articles 63.3 and 63.4 partly in one way and partly in another;

63.5.2 make such arrangements as they think fit to deal with Shares or debentures becoming distributable in fractions under this Article (including the issuing of fractional certificates or the making of cash payments); and

63.5.3 authorise any person to enter into an agreement with the Company on behalf of all the persons entitled which is binding on them in respect of the allotment of Shares and debentures to them under this Article.

ORGANISATION OF GENERAL MEETINGS

64 Attendance and speaking at general meetings

- 64.1 A person is able to exercise the right to speak at a general meeting when that person is in a position to communicate to all those attending the meeting, during the meeting, any information or opinions which that person has on the business of the meeting.
- 64.2 A person is able to exercise the right to vote at a general meeting when:
- 64.2.1 that person is able to vote, during the meeting, on resolutions put to the vote at the meeting, and
 - 64.2.2 that person's vote can be taken into account in determining whether or not such resolutions are passed at the same time as the votes of all the other persons attending the meeting.
- 64.3 The directors may make whatever arrangements they consider appropriate to enable those attending a general meeting to exercise their rights to speak or vote at it.
- 64.4 In determining attendance at a general meeting, it is immaterial whether any two or more members attending it are in the same place as each other.
- 64.5 Two or more persons who are not in the same place as each other attend a general meeting if their circumstances are such that if they have (or were to have) rights to speak and vote at that meeting, they are (or would be) able to exercise them.

65 Quorum for general meetings

No business of the meeting is to be transacted at a general meeting if the persons attending it do not constitute a quorum. An Investor Director shall be appointed as the chairperson of the meeting unless otherwise directed or resolved with Investor Consent or Investor Direction. Subject to the provisions of Part B of these Articles, at least two shareholders, one of which must be the Investor Director or a representative of the Lead Investor present in person or by proxy shall be a quorum.

66 Chairing general meetings

- 66.1 If the directors have appointed a Chairperson, the Chairperson shall chair general meetings if present and willing to do so.
- 66.2 If the directors have not appointed a Chairperson, or if the Chairperson is unwilling to chair the meeting or is not present within ten minutes of the time at which a meeting was due to start:
- 66.2.1 the directors present, or
 - 66.2.2 (if no directors are present), the meeting,
- must appoint a director or member to chair the meeting, and the appointment of the chairperson of the meeting must be the first business of the meeting.
- 66.3 The person chairing a meeting in accordance with this Article is referred to as "the chairperson of the meeting".

67 Attendance and speaking by directors and non-members

- 67.1 Directors may attend and speak at general meetings, whether or not they are members.
- 67.2 The chairperson of the meeting may permit other persons who are not:
- 67.2.1 members of the Company, or
 - 67.2.2 otherwise entitled to exercise the rights of members in relation to general meetings,

to attend and speak at a general meeting.

68 Adjournment

- 68.1 If the persons attending a general meeting within 30 minutes from the time at which the meeting was due to start do not constitute a quorum, or if during a meeting a quorum ceases to be present for a period exceeding 10 minutes, the chairperson may reconvene the meeting with the presence of one (1) Investor Director.
- 68.2 No business may be transacted at an adjourned general meeting which could not properly have been transacted at the meeting if the adjournment had not taken place.

VOTING AT GENERAL MEETINGS

69 Voting: general

A resolution put to the vote of a general meeting must be decided on a show of hands unless a poll is duly demanded in accordance with these Articles.

70 Errors and disputes

- 70.1 No objection may be raised to the qualification of any person voting at a general meeting except at the meeting or adjourned meeting at which the vote objected to is tendered, and every vote not disallowed at the meeting is valid.
- 70.2 Any such objection must be referred to the chairperson of the meeting, whose decision is final.

71 Poll votes

- 71.1 A poll on a resolution may be demanded:
- 71.1.1 in advance of the general meeting where it is to be put to the vote, or
 - 71.1.2 at a general meeting, either before a show of hands on that resolution or immediately after the result of a show of hands on that resolution is declared.
- 71.2 A poll may be demanded by any Qualifying Person present and entitled to vote on the resolution.
- 71.3 A demand for a poll may be withdrawn if:
- 71.3.1 the poll has not yet been taken, and
 - 71.3.2 the chairperson of the meeting consents to the withdrawal.
- 71.4 Polls must be taken immediately and in such manner as the chairperson of the meeting directs.

72 Content of proxy notices

- 72.1 Proxies may only be validly appointed by a notice in writing (a “**proxy notice**”) which:
- 72.1.1 states the name and address of the member appointing the proxy;
 - 72.1.2 identifies the person appointed to be that member's proxy and the general meeting in relation to which that person is appointed;
 - 72.1.3 is signed by or on behalf of the member appointing the proxy, or is authenticated in such manner as the directors may determine; and
 - 72.1.4 is delivered to the Company in accordance with the Articles not less than 24 hours before the time appointed for holding the meeting or adjourned meeting at which the

right to vote is to be exercised and in accordance with any instructions contained in the notice of the general meeting (or adjourned meeting) to which they relate

and a proxy notice which is not delivered in such manner shall be invalid, unless the directors, in their discretion, accept the notice at any time before the meeting.

- 72.2 The Company may require proxy notices to be delivered in a particular form, and may specify different forms for different purposes.
- 72.3 Proxy notices may specify how the proxy appointed under them is to vote (or that the proxy is to abstain from voting) on one or more resolutions.
- 72.4 Unless a proxy notice indicates otherwise, it must be treated as:
- 72.4.1 allowing the person appointed under it as a proxy discretion as to how to vote on any ancillary or procedural resolutions put to the meeting, and
 - 72.4.2 appointing that person as a proxy in relation to any adjournment of the general meeting to which it relates as well as the meeting itself.

73 Delivery of proxy notices

- 73.1 A person who is entitled to attend, speak or vote (either on a show of hands or on a poll) at a general meeting remains so entitled in respect of that meeting or any adjournment of it, even though a valid proxy notice has been delivered to the company by or on behalf of that person.
- 73.2 An appointment under a proxy notice may be revoked by delivering to the Company a notice in writing given by or on behalf of the person by whom or on whose behalf the proxy notice was given.
- 73.3 A notice revoking a proxy appointment only takes effect if it is delivered before the start of the meeting or adjourned meeting to which it relates.
- 73.4 If a proxy notice is not executed by the person appointing the proxy, it must be accompanied by written evidence of the authority of the person who executed it to execute it on the appointor's behalf.

74 No voting of shares on which money owed to company

No voting rights attached to a Share may be exercised at any general meeting, at any adjournment of it, or on any poll called at or in relation to it, or in relation to any written resolution of the Company unless all amounts payable to the Company in respect of that Share have been paid.

75 Amendments to resolutions

- 75.1 An ordinary resolution to be proposed at a general meeting may be amended by ordinary resolution if:
- 75.1.1 notice of the proposed amendment is given to the Company in writing by a person entitled to vote at the general meeting at which it is to be proposed not less than 48 hours before the meeting is to take place (or such later time as the chairperson of the meeting may determine), and
 - 75.1.2 the proposed amendment does not, in the reasonable opinion of the chairperson of the meeting, materially alter the scope of the resolution.
- 75.2 A special resolution to be proposed at a general meeting may be amended by ordinary resolution, if:

- 75.2.1 the chairperson of the meeting proposes the amendment at the general meeting at which the resolution is to be proposed, and
- 75.2.2 the amendment does not go beyond what is necessary to correct a grammatical or other non-substantive error in the resolution.
- 75.3 If the chairperson of the meeting, acting in good faith, wrongly decides that an amendment to a resolution is out of order, the chairperson of the meeting's error does not invalidate the vote on that resolution.

76 Application of rules to class meetings

The provisions of these Articles relating to general meetings apply, with any necessary modifications, to meetings of the holders of any class of Shares.

ADMINISTRATIVE ARRANGEMENTS

77 Company name

The Company may change its name by a resolution of the directors in favour of which an Investor Director has voted.

78 Means of communication to be used

- 78.1 Subject to these Articles, anything sent or supplied by or to the Company under these Articles may be sent or supplied in any way in which the Act provides for documents or information which are authorised or required by any provision of the Act to be sent or supplied by or to the Company.
- 78.2 Except insofar as the Companies Acts require otherwise and save in respect of any notices sent by an Investor Majority, the Investor or an Investor Director pursuant to a provision of Part B of these Articles, the Company shall not be obliged to accept any notice, document or other information sent or supplied to the Company in electronic form unless it satisfies such stipulations, conditions or restrictions (including, without limitation, for the purpose of authentication) as the directors think fit, and the Company shall be entitled to require any such notice, document or information to be sent or supplied in hard copy form instead.
- 78.3 In the case of joint holders of a Share, except insofar as these Articles otherwise provide, all notices, documents or other information shall be given to the joint holder whose name stands first in the register of members in respect of the joint holding and shall be deemed to have been given to all the joint holders. For all purposes, including the execution of any appointment of proxy, resolution in writing, notice or other document (including anything sent or supplied in electronic form) executed or approved pursuant to any provision of these Articles, execution by any one of such joint holders shall be deemed to be and shall be accepted as execution by all the joint holders.
- 78.4 In the case of a member that is a corporation, for all purposes, including the execution of any appointment of proxy, resolution in writing, notice or other document (including anything sent or supplied in electronic form) executed or approved pursuant to any provision of these Articles, execution by any director or the secretary of that corporation or any other person who appears to any officer of the Company (acting reasonably and in good faith) to have been duly authorised to execute shall be deemed to be and shall be accepted as execution by that corporation.
- 78.5 A member whose registered address is not within the United Kingdom and who notifies the Company of an address within the United Kingdom at which notices, documents or other information may be served on or delivered to him shall be entitled to have such things served on or delivered to him at that address (in the manner referred to above), but otherwise no such

member shall be entitled to receive any notice, document or other information from the Company. If the address is that member's address for sending or receiving documents or information by electronic means the Directors may at any time without prior notice (and whether or not the Company has previously sent or supplied any documents or information in electronic form to that address) refuse to send or supply any documents or information to that address.

78.6 Subject to these Articles, any notice or document to be sent or supplied to a director in connection with the taking of decisions by directors may also be sent or supplied by the means by which that director has asked to be sent or supplied with such notices or documents for the time being.

78.7 A director may agree with the Company that notices or documents sent to that director in a particular way are to be deemed to have been received within a specified time of their being sent, and for the specified time to be less than 48 hours.

79 Notices

79.1 Any notice, document or other information shall be deemed served on or delivered to the intended recipient:

79.1.1 if properly addressed and sent by prepaid United Kingdom first class post to an address in the United Kingdom, 48 hours after it was posted (or five business days after posting either to an address outside the United Kingdom or from outside the United Kingdom to an address within the United Kingdom if (in each case) sent by reputable international overnight courier addressed to the intended recipient, provided that delivery in at least five business days was guaranteed at the time of sending (and the sending party receives a confirmation of delivery from the courier service provider));

79.1.2 if properly addressed and delivered by hand, when it was given or left at the appropriate address;

79.1.3 if properly addressed and sent or supplied by electronic means, two hours after the document or information was sent or supplied; and

79.1.4 if sent or supplied by means of a website, when the material is first made available on the website or (if later) when the recipient receives (or is deemed to have received) notice of the fact that the material is available on the website.

For the purpose of this Article, no account shall be taken of any part of a day that is not a business day.

79.2 In proving that any notice, document or other information was properly addressed, it shall be sufficient to show that the notice, document or other information was addressed to an address permitted for the purpose by the Act.

80 Company seals

80.1 Any common seal may only be used by the authority of the directors.

80.2 The directors may decide by what means and in what form any common seal is to be used.

80.3 Unless otherwise decided by the directors, if the Company has a common seal and it is affixed to a document, the document must also be signed by at least one authorised person in the presence of a witness who attests the signature.

80.4 For the purposes of this Article, an authorised person is:

- 80.4.1 any director of the Company;
- 80.4.2 the company secretary (if any); or
- 80.4.3 any person authorised by the directors for the purpose of signing documents to which the common seal is applied.

81 No right to inspect accounts and other records

Except as provided by law or authorised by the directors or an ordinary resolution of the Company (with Investor Consent), no person is entitled to inspect any of the Company's accounting or other records or documents merely by virtue of being a member.

82 Provision for employees on cessation of business

The directors may decide to make provision for the benefit of persons employed or formerly employed by the Company or any of its subsidiaries (other than a director or former director or shadow director) in connection with the cessation or transfer to any person of the whole or part of the undertaking of the Company or that subsidiary.

83 Directors' indemnity and insurance

83.1 Subject to the provisions of the Act (but so that this Article 83.1 does not extend to any matter insofar as it would cause this Article or any part of it to be void thereunder), the Company:

83.1.1 shall, without prejudice to any indemnity to which the person concerned may otherwise be entitled, indemnify any director or other officer (other than an auditor) of the Company and any associated company against all losses and liabilities incurred by him in the actual or purported execution, or discharge, of his duties in relation to:

- (a) the Company;
- (b) any associated company; and
- (c) any occupational pension scheme of which the Company or any associated company is a trustee

including (without prejudice to the generality of the foregoing) any liability incurred by him in defending any proceedings (whether civil or criminal) in which judgment is given in his favour (or the proceedings are otherwise disposed of without any finding of any material breach of duty on his part) or in which he is acquitted or in connection with any application in which the court grants him relief from liability for negligence, default, breach of duty or breach of trust in relation to the Company, any associated company or any occupational pension scheme of which the Company or any associated company is a trustee; and

83.1.2 may, without prejudice to the provisions of Article 83.1.1, purchase and maintain insurance for any person who is or was a director or officer of the company or any associated company against any loss or liability which he may incur, whether in connection with any proven or alleged negligence, default, breach of duty or breach of trust or otherwise in relation to the Company, any associated company, any employees' share scheme of the Company or of any associated company or any occupational pension scheme of which the Company or any associated company is a trustee

where for the purposes of this Article 83.1, companies are associated if one is a subsidiary of the other or both are subsidiaries of the same body corporate.

84 Relationship to Financing Documents

- 84.1 Notwithstanding any other provision of these Articles, no payment shall be declared or paid by the Company by way of dividend or other distribution, purchase, redemption, reduction or return of Shares or capital if and to the extent that such payment is prohibited or restricted by the terms of the Financing Documents (for so long as the Financing Documents remain in force and effect). No dividends or other distributions in respect of the Shares shall constitute a debt enforceable against the Company unless such dividend or distribution is permitted to be paid in accordance with the terms of the Financing Documents (for so long as the Financing Documents remain in force and effect) but any interest which is prescribed to accrue on any such dividends or distributions in accordance with these Articles shall continue to accrue with effect from the date upon which the dividend or distribution would otherwise have been a debt due from the Company and enforceable (but for this Article 84.1 and the provisions of the Financing Documents) until the date on which payment is actually made.
- 84.2 If any dividend or distribution is not paid because of the provisions of Article 84.1 or the Financing Documents, such dividend or distribution shall be paid forthwith upon the requisite consent being obtained or the relevant prohibition on such payment ceasing.

85 Data protection

- 85.1 Each of the members and directors (from time to time) consents to the processing of his personal data by the Company, its members and directors (each a “**Recipient**”) for the purposes of due diligence exercises, compliance with applicable laws, regulations and procedures and the exchange of information amongst themselves. A Recipient may process such personal data either electronically or manually.
- 85.2 The personal data that may be processed for such purposes under this Article 85 shall include any information which may have a bearing on the prudence or commercial merits of investing in, or disposing of any Shares (or other investment or security) in, the Company. Save as required by law, court order or any regulatory authority, that personal data shall not be disclosed by a Recipient or any other person, except to:
- 85.2.1 a Member of the Same Group as the Recipient (each a “**Recipient Group Company**”);
 - 85.2.2 employees, directors and professional advisers of that Recipient or any Recipient Group Company; and
 - 85.2.3 funds managed by any of the Recipient Group Companies.
- 85.3 Each of the members and directors consent (from time to time) to the transfer of such personal data to persons acting on behalf of any Recipient and to the offices of any Recipient, both within and outside the European Economic Area, for the purposes stated above, where it is necessary or desirable to do so.